

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED					
29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Solicitation/Contract Form Continuation

Undersea Warfare Division 40 Analytical Operational Test and Evaluation Support Services

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

MINIMUM AND MAXIMUM QUANTITIES (FFP, SINGLE AWARD IDIQ) (SEP 2015)

As referred to in paragraph (b) of the "Indefinite Quantity" clause of this contract, the total contract minimum quantity is a total of \$2,500.00 worth of orders at the contract unit price(s). The contract maximum quantity is a total of \$37,000,000.00.

LOCAL TEXT "UNLIQUIDATED OBLIGATIONS"

The Government intends to unilaterally deobligate any unliquidated obligations 90 days after each period of performance. Prior to doing so, the Contracting Officer (or Administrative Contracting Officer) will notify the contractor of the intended amount of deobligation and ask the contractor to confirm within one week that all invoices for the completed period of performance have been submitted and processed for payment (with the exception of any invoice for rate adjustment upon receipt of DCAA approved final rates for any cost-type CLINs or SLINs). Upon confirmation that all invoices have been submitted and processed for payment, or upon the contractor's failure to respond to the PCO/ACOs notification of intent to deobligate, the Contracting Officer or Administrative Contracting Officer will unilaterally deobligate the potential ULOs by reducing the funded amount to an amount equal to the contractors invoiced/paid amount for that contract period of performance.

Note: Reduction of cost-reimbursement CLINs or SLINs in accordance with the above DOES NOT change either party's obligations under a Final Invoice submitted upon DCMA establishing final rates for each CLIN and or SLIN.

Allowed Per Order

Minimum: 1.00 Dollars, U.S.

Maximum: 37,000,000.00 Dollars, U.S.

Government Minimum/Maximum to Order

Minimum: 2,500.00 Dollars, U.S.

Maximum: 37,000,000.00 Dollars, U.S.

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Test and Evaluation Services Pricing Arrangement: Firm Fixed Price	1	Unit		
0002	Travel Pricing Arrangement: Cost No Fee	1	Unit		
Option Line Item 1001	Option Period - Test and Evaluation Services Pricing Arrangement: Firm Fixed Price	1	Unit		
Option Line Item 1002	Option Period - Travel Pricing Arrangement: Cost No Fee	1	Unit		

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Continuation of Description

1.0 Scope. The Contractor shall provide technical and analytical support to Operational Test and Evaluation Force (OPTEVFOR) in the definition, conduct, and analysis of structured Operational Test and Evaluation (OT&E) of US Navy Undersea Warfare systems. This support will be required in one or more of the following forms: Documentation Review, Operational Test Design, Test Execution, Data Management, Test Planning Support, Test Operations Support, Test Analysis and Reporting, Modeling and Simulation Support, and Program Management Support. OPTEVFOR is charged with leading the Operational Test community with highly skilled testers and staff that adapt to change, and provide credible, prompt, warfighting-focused test results to Navy, Marine Corps, Coast Guard forces and acquisition leadership.

2.0 Background. There are five warfare divisions at OPTEVFOR that are supported by competency divisions. The warfare divisions include Undersea Warfare (40), Air Warfare (50), Command, Control, Communications, Computers, Intelligence, Surveillance, and Reconnaissance (C4ISR) (60), Surface Warfare (70), Expeditionary Warfare/Littoral Combat Ship (80) Division. Each warfare division typically has a Navy Captain as the division Director with a senior civil servant as the Deputy or a senior civil servant as the division Director and a Navy Commander as the Deputy.

The warfare divisions represent the traditional core of the OPTEVFOR organization. This is where the Fleet operators reside. The work there allows OPTEVFOR to bridge the gap from technical to the tactical, successfully. The warfare divisions are staffed by uniformed military personnel and Navy government civilians, augmented by a contractor workforce.

There are four competency divisions: Policy and Operations (01A), Test Design (01B), Test Planning and Analysis (01C), and Cybersecurity Testing (01D). In addition, the Technical Director (00TD) oversees the technical aspects of the Command's mission. Other support divisions include the Staff Commanding Officer and Administration (10), Chief Information Officer (CIO) (20), Contracts (01K), and the Comptroller (30). The members of the competency divisions generally work within the test team to ensure that the Director's policies are adhered to, and that Best Practice Series are applied.

Test Policy, Operations and Training (Code 01A) ensures OPTEVFOR policy conforms to Navy T&E Policy; monitors production of T&E products; leads continuous process improvement efforts; coordinates external OT&E inquiries (IG and GAO); manages all government T&E training (including budget requests); provides T&E editorial support to the command; and plans, analyzes and evaluates the effectiveness of command processes.

Test Design and M&S (Code 01B) is responsible for the Mission Based Test Design (MBTD) process, M&S technical review, test planning and post-test iterative process analysis support, test design production, Capabilities Based Test and Evaluation coordination, and Targets, Ranges, and Test Resources coordination.

Test Planning and Analysis Division (Code 01C) is responsible for policy, processes and standardization for test planning, test execution, post-test analysis and evaluation (reporting). This includes providing Lead Test Engineer (LTE) support to the OTF Warfare Divisions and Fleet Resources coordination to support execution of OT&E.

Cybersecurity Division (Code 01D) integrates critical cybersecurity testing into the acquisition lifecycle and tests Systems under Test (SUT) per DoDI 5000.02 and DOT&E memo of 01 August 2014. The Under Sea Warfare division will be responsible for executing acquisition test design, planning support to ultimately provide the Cybersecurity OT&E group (01D) support in cybersecurity execution and reporting. Through a rigorous and iterative test process, Cybersecurity OT&E assists in the development and fielding of more secure and resilient Information Technology (IT) systems supporting the warfighters. Code 01D Cybersecurity OT&E group includes the following support positions: Technical Director, Future Capabilities and Threat Emulation Developer, Cybersecurity Test Engineers, Test Design and Analysis Manager, Training and Lab Manager, Test Team Leads, and Certified Ethical Hackers.

3.0 Undersea Warfare Division and Supported Programs. The Undersea Warfare Division (USW) (Code 40) tests and evaluates all undersea warfare systems, including submarine, surface, aviation, and UUV anti-submarine warfare and mine warfare systems under the most operationally realistic conditions possible. The division's main effort is to assist, through early involvement, in the acquisition process, conduct tests, and provide timely and accurate evaluations to characterize system performance and resulting capability. Below is a list of current USW test and evaluation programs that require OT&E support; however, additional programs may be assigned to OPTEVFOR for contractor support under this contract. Current USW Test and Evaluation programs include, but are not limited to:

- VIRGINIA Class SSN Program (SSN 774)
- COLUMBIA Class SSBN Program (SSBN 826)
- Mk 48 Common Broadband Advanced Sonar System (CBASS) Heavyweight Torpedo (HWT)
- Mk 54 Lightweight Hybrid Torpedo (LWT) Program
- Acoustic Device Countermeasure (ADC) MK 5
- Compact Rapid Attack Weapon (CRAW)
- Submarine Launched Unmanned Aerial System (SLUAS)
- Hammerhead Encapsulated Effector (HHEE)
- Conventional Prompt Strike (CPS)
- Maritime Strike Tomahawk (MST) Integration
- Submarine Launched HARPOON Integration
- AN/SQQ-89 ASW Combat System Integration
- Surveillance Towed Array Sensor System (SURTASS), including Low Frequency Active Array, TL-29A Towed Array, and Integrated Common Processor
- SURTASS-Expeditionary (SURTASS-E)
- Auxiliary General Ocean Surveillance Ship (T-AGOS(X))
- AN/BQQ-10(V) Sonar System, Acoustic Rapid COTS Insertion (A-RCI)
- AN/BYG-1 Combat Control System (CCS) (ECP4)
- TB-29 Reduced Length (RL) Array

TB-33 Thin Line Array
TB-34 Fat Line Array
Low Cost Conformal Array (LCCA)
Large Vertical Array (LVA)
Wide Aperture Array (WAA)
Large Aperture Bow Array (LAB)/Spherical Array
Common Submarine Radio Room (CSRR)
Electronic Warfare Support (BLQ-10)
OE-538/BRC Antenna
Common Submarine Imaging System (CSIS)
Low Band Universal Communications System (LBUCS)
XLUUV (ORCA)
LDUUV (Snakehead, Dragonfish)
Razorback - Torpedo tube launched autonomous unmanned underwater vehicle
Tetra - Torpedo tube launched remotely operated underwater vehicle
Trident D5LE2 Strategic Weapon System
Submarine Launched Cruise Missile - Nuclear (SLCM-N)
Link 16 Tactical Data Link

4.0 Performance Period and Location.

4.1 Period of Performance. See schedule.

4.2 Place of Performance. Unless required to support mission accomplishment, work shall primarily be performed at the customer's site. If the number of personnel exceeds onsite capabilities, unclassified work will be expected to be performed at a contractor facility offsite. The government will not determine a situation where the contractor may utilize "Telework" as this is a professional services contract, so any work performed by the contractor away from the customer location will be upon the contractor to ensure all requirements are being met within the respective task orders issued under this contract. The customer location is:

Operational Test and Evaluation Force
7970 Diven Street
Norfolk, VA 23505-1498

While onsite at OPTEVFOR, the contractor shall comply with OPNAVINST 5239 (series), with specific regard to non-government hardware and software. Normal workdays at OPTEVFOR are Monday through Friday and normal working hours are from 0730 through 1600 ET. The manned quarter deck watch will unlock the front and back doors to CA-10 at 0500 (M-F) and lock the front and back doors to CA-10 at 1830 (M-F). Any contractor who desires to remain past 1830 in CA-10 to perform services under their support contract MUST notify the quarterdeck CDO/watch stander NLT 1700 on the day they will be working past 1830. Once the contractor has secured all work and access in their respective workspace, they will notify the CDO/watch stander that they are securing for the day.

4.3 Travel. Travel can be expected to occur CONUS and OCONUS and will be required throughout the course of this contract. The need for travel associated with this PWS shall be determined in advance by the COR at the Task Order level and authorized by the COR. Travel shall be paid by the Contractor and reimbursed by the Government. Travel costs/expenses will be considered reasonable and allowable only to the extent that they do not exceed on a daily basis, the maximum per diem rates in effect at the time of the travel. Travel expenses include airfare, per diem, rental car, local travel and miscellaneous expenses as authorized by the Joint Travel Regulations (JTR). Costs for transportation may be based upon mileage rates, actual costs incurred or a combination thereof, provided the method used results in a reasonable charge. No mileage costs will be incurred when travel is within a 50-mile radius of the primary work location. The JTR, while not wholly applicable to Contractors, shall provide the basis for the determination as to reasonable and allowable. Maximum use is to be made of the lowest available customary standard coach or equivalent airfare accommodations available during normal business hours. Exceptions to these guidelines shall be approved in advance by the Contracting Officer or Designee. Travel dates and locations are to be confirmed through the TA and approved by the COR in writing via email, prior to commencement of any travel.

4.4 Observed Federal Holidays

Columbus Day
Veterans Day
Thanksgiving
Christmas Day
New Year's Day
MLK Jr. Day / Inauguration Day Mon
Washington's Birthday Mon
Spring Holiday (MIL Only) Sun
Memorial Day
Juneteenth National Independence Day
Independence Day
Labor Day

4.5 Travel Instructions.

4.5.1 Any travel OCONUS by the Contractor will need to review the Foreign Clearance Guide at <http://www.fcg.pentagon.mil/fcg.cfm> and select the country of intended travel. During OCONUS travel, the contractor shall operate in accordance with International Traffic in Arms Regulation (ITAR) Part 124, approved by US Department of State, Office of Defense Trade Controls. Contractor is not authorized to perform any travel that is not in

conjunction with this contract. It is the Department of the Navy (DON) policy not to allow a charge of profit or fee on reimbursable items.

4.5.2 The Government will make no reimbursements for a contractor's local travel (defined as less than 50 miles from the place of performance).

4.5.3 In no instance shall the contractor exceed the amount specified in the contract for travel CLIN expenses.

4.5.4 Locations include CONUS, OCONUS and at sea locations and any other location, which may be added on a task order basis based on future test requirements.

4.5.5 For planning purposes, any travel location OCONUS must be considered as a possible travel location unless travel restrictions at time of test do not permit entry. Possible OCONUS locations include, but are not limited to the following: Andros Island, Bahamas, Darwin, Brisbane, Melbourne, Newcastle, Perth, and Sydney, Australia; London, England; Honduras, Singapore; La Spezia, Italy; Guam; Hawaii; Halifax, Nova Scotia; Nanosee, British Colombia; Columbia; Belize; Guatemala; Souda Bay, Crete; Mexico; and any other location, which may be added on a task order basis based on future test requirements.

5.0 Specific Tasking. The contractor shall provide support in evaluating the operational effectiveness and suitability of the system under test that has been assigned to OPTEVFOR for OT&E in accordance with the processes and procedures prescribed in OPTEVFOR M-3980.2 (series), the Operational Test and Evaluation Manual. This manual and other governing OT&E references are listed in paragraph 12 and are available from the OT Resource Library on the OPTEVFOR Sharepoint site:

<https://flankspeed.sharepoint-mil.us/sites/OPTEVFOR/SitePages/01A-Division-OT-Resources.aspx>.

5.1 All government furnished Non-Secure Internet Protocol Router (NIPR) templates to be used by the contractor shall only be obtained from the authoritative source, the OT Resource Library on the OPTEVFOR Sharepoint site

<https://flankspeed.sharepoint-mil.us/sites/OPTEVFOR/SitePages/01A-Division-OT-Resources.aspx>.

5.2 All government furnished Secure Internet Protocol Router (SIPR) templates to be used by the contractor shall only be obtained from the authoritative source, the OPTEVFOR SIPR Share Drive:

Y: / OT&E Production Library.

5.3 The contractor shall sign up for the OPTEVFOR "Alerts for OT Resource Changes" to receive updates (which can be tailored on what you receive) on all instructions, Best Practices, and templates. Instructions to sign up are found on the OPTEVFOR SharePoint page under 01A - Operations, OT Instructions and Guidance:

<https://flankspeed.sharepoint-mil.us/sites/OPTEVFOR/SitePages/01A-Division-OT-Resources.aspx>

5.4 The relevant process that requires the use of government furnished templates are (but not limited to):

- a. Test Design
 - o LTD Brief
 - o LTD Letter
 - o IEF and TIEF
 - o IEF Change Letter
 - o SWP TIEF Approval Letter
 - o E-IPR Brief
 - o RCRM
- b. Test Strategy
 - o TEMP or MTS Letter (O6 Comment, Signature, Change)
 - o TECP Brief
- c. Test Planning
 - o Test Plan (IOT&E, FOT&E, OA/EOA, QRA, DCP, VCD)
 - o Concept of Test Brief
 - o Cyber Survivability Test Plan
 - o CP0 Brief
 - o CP2 Brief
- d. Post-Test Iterative Process (PTIP)
 - o Blue & Gold Sheets
 - o Report Letter (IOT&E, FOT&E, OA/EOA, QRA)
 - o SERB/E-SERB Brief
 - o Letter of Observation (LOO)
 - o Assessment of Operational Capability (AOC)

5.5 Overall Task Guidance. To gain efficiencies and synergy in contract execution, the Government encourages the Contractor to consider:

5.5.1 Flexibility in production. OPTEVFOR produces information which may take many forms. Support teams should be willing to experiment, bring up new ideas or better ways of doing things, but remain willing to execute stated processes as required by the contract and/or task order.

5.5.2 Present concerns about the validity of the information produced and value to the end customer (Fleet or Program). Remain willing to defend a contrary position until government makes a final decision.

5.5.3 Remain efficient and economical in production. Strive to produce information as quickly as possible without sacrificing quality, and with the appropriate level of expertise.

5.5.4 Maintain a broad perspective. Awareness of testing outside of a specific program to recommend testing efficiencies and overall kill chain evaluation opportunities.

5.5.5 Technical competence. Improve T&E community's ability to understand, analyze, communicate, and ultimately visualize T&E issues from a warfighter and technical perspective.

5.6 Mission Based Test Design.

5.6.1 Mission Analysis.

5.6.1.1 The Contractor shall perform Mission Based Test Design (MBTD) mission analysis in accordance with the Integrated Evaluation Framework

(IEF) Checklist and IEF Template, respectively.

5.6.1.2 The contractor shall analyze source data to perform Mission Based Test Design mission analysis.

5.6.1.3 The contractor shall identify and document the mission areas.

5.6.1.4 The contractor shall identify and document system capabilities.

5.6.1.5 The contractor shall derive and document operator tasks.

5.6.1.6 The contractor shall define and document the operational conditions applicable to the system to be tested.

5.6.1.7 The contractor shall document the mission analysis in the Mission Based Test and Evaluation System (MBTES).

5.6.1.8 The contractor shall document the mission analysis in an IEF document.

5.6.1.9 The contractor shall review the mission analysis during MBTD reviews.

5.6.1.10 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of mission analysis MBTD reviews.

5.6.2 Requirements Analysis.

5.6.2.1 The contractor shall perform Mission Based Test Design requirements analysis in accordance with the IEF Checklist and IEF Template, respectively.

5.6.2.2 The contractor shall analyze source data to perform Mission Based Test Design requirements analysis.

5.6.2.3 The contractor shall identify and document measures of system performance, inclusive of critical measures.

5.6.2.4 The contractor shall link measures of system performance to subtasks and document this linkage.

5.6.2.5 The contractor shall identify and document the data required to quantify the measures of system performance.

5.6.2.6 The contractor shall identify and document the data required to quantify the operational conditions applicable to the system to be tested.

5.6.2.7 The contractor shall document requirements analysis in the MBTES.

5.6.2.8 The contractor shall review the requirements analysis during MBTD reviews.

5.6.2.9 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of requirements analysis MBTD reviews.

5.6.3 Test Design.

5.6.3.1 The Contractor shall perform Mission Based Test Design test design in accordance with the IEF Checklist and IEF Template, respectively.

5.6.3.2 The contractor shall analyze source data to perform Mission Based Test Design.

5.6.3.3 The contractor shall identify and document the candidate response variables for statistical test design.

5.6.3.4 The contractor shall identify and document factors/conditions (with corresponding levels) associated with each response variable or critical measure used in test design.

5.6.3.5 The contractor shall participate in and document the statistical test design for candidate response variables and/or critical measures.

5.6.3.6 The contractor shall identify and document the test vignettes.

5.6.3.7 The contractor shall determine and document the appropriate test method.

5.6.3.8 The contractor shall determine and document a test schedule supporting execution of the test design.

5.6.3.9 The contractor shall identify and document the expected use of Modeling and Simulation in the execution of the test design.

5.6.3.10 The contractor shall determine and document the resources required to conduct the test.

5.6.3.11 The contractor shall determine and document the limitations to test based on known availability of resources and assets to conduct the test.

5.6.3.12 The contractor shall develop and document data sheets to support test execution.

5.6.3.13 The contractor shall document the test design in the MBTES.

5.6.3.14 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of test design MBTD reviews.

5.7 Stakeholder Collaboration (Working Integrated Product Teams (WIPTs), outreach, etc.).

5.7.1 The contractor shall make recommendations to the warfare division in accordance with OPTEVFOR processes found in the OT&E Manual and IEF Checklist.

5.7.2 The contractor shall identify and recommend outside organization(s) for participation and inclusion in Test Design activities.

5.7.3 The contractor shall coordinate briefings/meetings in support of OPTEVFOR TEMP Input activities in accordance with IEF Checklist and IEF Template.

5.7.4 The contractor shall participate in briefings/meetings in support of OPTEVFOR TEMP Input activities in accordance with IEF Checklist and IEF Template.

5.7.5 The contractor shall lead briefings/meetings in support of OPTEVFOR TEMP Input activities in accordance with IEF Checklist and IEF Template.

5.7.6 The contractor shall provide a trip report (DELIVERABLE A002) when contract activities occur away from the OPTEVFOR site in Norfolk, VA.

5.8 Document and Brief Preparation. The contractor shall prepare and document briefings (DELIVERABLE A001) to include the Integrated Evaluation Framework, Executive In-Process Review and stakeholder collaboration briefings.

5.9 Test and Evaluation Master Plan (TEMP) Input Preparation.

5.9.1 The contractor shall analyze source data to provide input to the TEMP, to include program schedules, the Integrated Evaluation Framework, applicable policy documents and any other program-provided materials.

5.9.2 The contractor shall develop and document input to the TEMP in accordance with the DOT&E TEMP Guidebook.

5.9.3 The contractor shall develop and document comments to the TEMP related to or affecting OT.

5.9.4 The contractor shall provide a trip report (DELIVERABLE A002) when contract activities occur away from the OPTEVFOR site in Norfolk, VA.

5.10 Test Planning.

5.10.1 Plan of Action and Milestones (POA&M).

5.10.1.1 The contractor shall develop and document a POA&M for the Test Planning process in accordance with the Test Planning Checklist.

5.10.1.2 The contractor shall analyze source data to perform Test Planning POA&M development.

5.10.1.3 The contractor shall obtain and maintain access to the program MBTES database to support the test planning process.

5.10.2 Purpose of Test.

5.10.2.1 The contractor shall perform the activities associated with development of Purpose of Test in accordance with the Test Planning Checklist.

5.10.2.2 The contractor shall analyze source data to perform Test Planning Purpose of Test development.

5.10.2.3 The contractor shall update and document the System Under Test (SUT) and System of Systems (SoS) descriptions from the Integrated Evaluation Framework for use in the Test Plan.

5.10.2.4 The contractor shall identify and document the SUT test configuration.

5.10.2.5 The contractor shall identify and document the Developmental Test (DT)/Integrated Test (IT) contributions to OT.

5.10.2.6 The contractor shall identify and document regression test requirements for any Follow-on OT&E phases, if applicable.

5.10.2.7 The contractor shall identify and document changes to the limitations to test.

5.10.2.8 The contractor shall update and document the Mission Critical Subsystem Matrix (MCSM) from the Integrated Evaluation Framework.

5.10.2.9 The contractor shall document the Purpose of Test activities in a Test Plan document in accordance with the Test Planning Checklist, and the appropriate test plan templates.

5.10.2.10 The contractor shall review the Purpose of Test activities during test plan reviews.

5.10.2.11 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of Purpose of Test reviews.

5.10.3 Test Schedule.

5.10.3.1 The contractor shall perform the activities associated with development of the Test Schedule in accordance with the Test Planning Checklist.

5.10.3.2 The contractor shall analyze source data to perform Test Schedule development.

5.10.3.3 The contractor shall identify, recommend, and document data to be qualified for use in OT.

5.10.3.4 The contractor shall develop and document the Test Schedule, to include test events, for each test phase and period.

5.10.3.5 The contractor shall document the Test Schedule data in the MBTES.

5.10.3.6 The contractor shall document the Test Schedule activities in a Test Plan document in accordance with Test Planning Checklist and the appropriate test plan templates.

5.10.3.7 The contractor shall review the Test Schedule activities during test plan reviews.

5.10.3.8 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of Test Schedule reviews.

5.10.4 Detailed Method of Test.

5.10.4.1 The contractor shall perform the activities associated with development of the Detailed Method of Test in accordance with the Test Planning Checklist.

5.10.4.2 The contractor shall analyze source data to perform Detailed Method of Test development.

5.10.4.3 The contractor shall identify and document the data to be collected on each test event.

5.10.4.4 The contractor shall develop and document the start and stop criteria for each test event.

5.10.4.5 The contractor shall develop and document the GO/NO-GO criteria for each test event.

5.10.4.6 The contractor shall develop and document the Detailed Method of Test for each test event.

5.10.4.7 The contractor shall document the Detailed Method of Test in a Test Plan document in accordance with Test Planning Checklist and the appropriate test plan templates.

5.10.4.8 The contractor shall review the Detailed Method of Test during test plan reviews.

5.10.4.9 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of Detailed Method of Test reviews.

5.10.5 Data Collection Plan (DCP).

5.10.5.1 The contractor shall perform the activities associated with development of the Data Collection Plan in accordance with the Test Planning Checklist.

5.10.5.2 The contractor shall analyze source data to perform Data Collection Plan development.

5.10.5.3 The contractor shall review, update and document, as required, any changes to data requirements.

5.10.5.4 The contractor shall develop and document the Data Collection Plan.

5.10.5.5 The contractor shall identify test equipment/instrumentation needed for test data collection.

5.10.5.6 The contractor shall identify data repository.

5.10.5.7 The contractor shall create and document data sheets, interview sheets, focus group sheets, and survey sheets in support of the Data Collection Plan.

5.10.5.8 The contractor shall document the Data Collection Plan data in the MBTES.

5.10.5.9 The contractor shall document the Data Collection Plan in a Test Plan document in accordance with Test Planning Checklist and the appropriate test plan templates.

5.10.5.10 The contractor shall review the Data Collection Plan during test plan reviews.

5.10.5.11 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of Data Collection Plan reviews.

5.10.6 Data Analysis Plan (DAP).

5.10.6.1 The contractor shall perform the activities associated with the development of the Data Analysis Plan in accordance with the Test Planning Checklist and the appropriate test plan templates.

5.10.6.2 The contractor shall analyze source data to perform Data Analysis Plan development.

5.10.6.3 The contractor will develop and document the COI resolution method.

5.10.6.4 The contractor will develop and document data scoring criteria.

5.10.6.5 The contractor shall identify and document Scoring Board Guidance.

5.10.6.6 The contractor shall provide a data analysis repository with Government concurrence.

5.10.6.7 The contractor shall document the Data Analysis Plan in a Test Plan document in accordance with Test Planning Checklist and the appropriate test plan templates.

5.10.6.8 The contractor shall review the Data Analysis Plan during test plan reviews.

5.10.6.9 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of Data Analysis Plan reviews.

5.10.7 Stakeholder Collaboration (WIPTs, outreach, etc).

5.10.7.1 The contractor shall make recommendations to the warfare division in accordance with OPTEVFOR processes found in the OT&E Manual, Test Planning Checklist, and test plan templates.

5.10.7.2 The contractor shall identify and recommend outside organization(s) for participation and inclusion in Test Planning activities.

5.10.7.3 The contractor shall coordinate briefings/meetings in support of OPTEVFOR Test Planning activities in accordance with Test Planning Checklist and the appropriate test plan templates.

5.10.7.4 The contractor shall participate in briefings/meetings in support of OPTEVFOR Test Planning activities in accordance with Test Planning Checklist and the appropriate test plan templates.

5.10.7.5 The contractor shall lead briefings/meetings in support of OPTEVFOR Test Planning activities in accordance with Test Planning Checklist and the appropriate test plan templates.

5.10.7.6 The contractor shall provide a trip report (DELIVERABLE A002) when contract activities occur away from the OPTEVFOR site in Norfolk, VA.

5.10.8 Document and Brief Preparation. The contractor shall prepare and document briefings (DELIVERABLE A001) to include the Test Plan, Data Collection Plan, Concept of Test, Test Plan Review Board, and stakeholder collaboration briefings.

5.11 Modeling and Simulation (M&S) Support.

5.11.1 M&S Requirements Development.

5.11.1.1 The Contractor shall perform M&S Requirements Development in accordance with OPTEVFORINST 5000.1 (series) and applicable Best Practices.

5.11.1.2 The contractor shall identify and document candidate critical measures/response variables, along with their associated conditions, during the Test Design portion of the MBTD process that will be supplemented by M&S data.

5.11.1.3 The contractor shall develop and document a M&S Requirements Letter in accordance with the M&S Requirements Letter template and applicable Best Practices.

5.11.1.4 The contractor shall review the M&S requirements during MBTD reviews.

5.11.1.5 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of M&S Requirements Development.

5.11.2 Develop Accreditation Plans.

5.11.2.1 The contractor shall develop an M&S Accreditation Plan in accordance with OPTEVFORINST 5000.1 (series), the Accreditation Plan template, and applicable Best Practices.

5.11.2.2 The contractor shall develop and document the accreditation approach method consistent with OPTEVFOR policy.

5.11.2.3 The contractor shall develop and document the Accreditation Plan.

5.11.2.4 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of M&S Accreditation Plan Development.

5.11.3 Review Verification & Validation (V&V) Plans and Reports.

5.11.3.1 The contractor shall review program M&S V&V plans and reports in accordance with OPTEVFORINST 5000.1 (series) and applicable Best Practice.

5.11.3.2 The contractor shall review and document disagreements or issues with V&V plan methodologies.

5.11.3.3 The contractor shall provide recommendations for alternative V&V methodologies supporting OPTEVFOR Accreditation Requirements.

5.11.3.4 The contractor shall review program M&S V&V reports and document disagreements or issues with methodologies/results based on comparison with live test results.

5.11.3.5 The contractor shall develop and document the OPTEVFOR V&V Report addendum.

5.11.3.6 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of M&S V&V Plans or Reports reviews.

5.11.4 Accreditation Support.

5.11.4.1 The contractor shall perform M&S Accreditation in accordance with OPTEVFORINST 5000.1 (series) and applicable Best Practices.

5.11.4.2 The contractor shall perform and document, in coordination with OPTEVFOR Test Design analysts, any additional required analysis not provided in the V&V report in support of accreditation.

5.11.4.3 The contractor shall identify, and document conclusions and recommendations based on comparison of live test results with M&S test results.

5.11.4.4 The contractor shall identify and document significant M&S limitations that impact the accreditation recommendation.

5.11.4.5 The contractor shall identify and document where the M&S results support the intended use for OT.

5.11.4.6 The contractor shall develop and document an accreditation recommendation in an Accreditation Letter in accordance with OPTEVFORINST 5000.1 (series), the Accreditation Letter template, and applicable Best Practices.

5.11.4.7 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of M&S Accreditation activities and reviews.

5.11.5 Stakeholder Collaboration.

5.11.5.1 The contractor shall make recommendations to the warfare division in accordance with OPTEVFOR processes found in OPTEVFORINST 5000.1 (series) and applicable Best Practices.

5.11.5.2 The contractor shall identify and recommend outside organization(s) for participation and inclusion in M&S VV&A activities.

5.11.5.3 The contractor shall coordinate briefings/meetings in support of OPTEVFOR M&S VV&A activities in accordance with OPTEVFORINST 5000.1 (series) and applicable Best Practices.

5.11.5.4 The contractor shall participate in briefings/meetings in support of OPTEVFOR M&S VV&A activities in accordance with OPTEVFORINST 5000.1 (series) and applicable Best Practices.

5.11.5.5 The contractor shall lead briefings/meetings in support of OPTEVFOR M&S VV&A activities in accordance with OPTEVFORINST 5000.1

(series) and applicable Best Practices.

5.11.5.6 The contractor shall provide a trip report (DELIVERABLE A002) when contract activities occur away from the OPTEVFOR site in Norfolk, VA.

5.11.6 Document and Brief Preparation. The contractor shall prepare and document briefings (DELIVERABLE A001) to include the M&S Requirements Letter, Accreditation Plan, Verification and Validation Report Addendum, Accreditation Letter, and stakeholder collaboration briefings.

5.12 Test Execution.

5.12.1 Pre-test Coordination.

5.12.1.1 The contractor shall identify, and schedule required test services (ranges, targets, personnel, etc.) for the test phase.

5.12.1.2 The contractor shall develop and submit asset scheduling requests to OPTEVFOR Fleet Services schedulers in accordance with the OT&E Manual.

5.12.1.3 The contractor shall develop and provide the OPTEVFOR pre-test letters for Commanding Officers of test units and Immediate Superior in Command (ISIC) in accordance with the OT&E Manual.

5.12.1.4 The contractor shall develop and provide briefing materials as required to support Operational Test Readiness Reviews (OTRR) in accordance with SECNAVINST 5000.2 (series).

5.12.2 Pre-test Brief.

5.12.2.1 The contractor shall prepare and document the Pre-Test briefing to support stakeholder alignment in execution preparations.

5.12.3 Test Operations.

5.12.3.1 The contractor shall collect and document test data using data cards/sheets, interview sheets, focus group sheets, and survey sheets in accordance with OPTEVFOR procedures and the signed test plan.

5.12.3.2 The contractor shall distribute text execution materials to all test participants.

5.12.3.3 The contractor shall develop and document any test deviations resulting from test variances.

5.12.3.4 The contractor shall develop and document a daily summary of test operations email.

5.12.4 Post-Test Activities.

5.12.4.1 The contractor shall conduct and document post-test event interviews.

5.12.4.2 The contractor shall conduct and document test team debriefs.

5.12.4.3 The contractor shall conduct and document test-site scoring boards.

5.13 Post-Test Iterative Process (PTIP) and Reporting.

5.13.1 Data Scoring.

5.13.1.1 The contractor shall perform PTIP Data Scoring in accordance with the Test Reporting Handbook, and applicable Best Practices.

5.13.1.2 The contractor shall inventory, compile, and document all collected data, comparing data collected to that required by the Test Plan, specifically the DMOT and DCP.

5.13.1.3 The contractor shall develop and document a test execution summary.

5.13.1.4 The contractor shall review the data during Data Scoring reviews.

5.13.1.5 The contractor shall develop the End of Test message.

5.13.1.6 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of Data Scoring reviews.

5.13.2 COI Evaluation.

5.13.2.1 The contractor shall perform PTIP COI Evaluation in accordance with the Test Reporting Handbook and applicable Best Practices.

5.13.2.2 The contractor shall develop and document risks and/or deficiencies using OPTEVFOR Blue and Gold Sheet templates.

5.13.2.3 The contractor shall develop and document test results in OPTEVFOR test report results paragraph format.

5.13.2.4 The contractor shall document any limitations to test identified during test execution or update any identified in test planning and realized during test execution.

5.13.2.5 The contractor shall develop and document COI evaluation via the Platform Mission Task (PMT) View.

5.13.2.6 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of COI Evaluation reviews.

5.13.3 Data Analysis.

5.13.3.1 The contractor shall perform PTIP Data Analysis in accordance with the Test Reporting Handbook .

5.13.3.2 The contractor shall conduct and document an analysis of all measures.

5.13.3.3 The contractor shall develop and conduct an RV Analysis Out brief in coordination with Test Design Analyst support.

5.13.3.4 The contractor shall develop a draft Data Analysis Summary (DAS).

5.13.3.5 The contractor shall review the DAS during Analysis Working Groups (AWG).

5.13.3.6 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of Data Analysis reviews.

5.13.4 Deficiency/Risk Documentation.

5.13.4.1 The contractor shall perform PTIP Deficiency/Risk Documentation in accordance with the Test Reporting Handbook and applicable Best Practices.

5.13.4.2 The contractor shall develop, distribute, and collect comments on draft Blue/Gold Sheets.

5.13.4.3 The contractor shall review the Deficiencies/Risks during PTIP reviews.

5.13.4.4 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of Deficiency/Risk reviews.

5.13.5 System Evaluation.

5.13.5.1 The contractor shall perform PTIP System Evaluation in accordance with the Test Reporting Handbook and applicable Best Practices .

5.13.5.2 The contractor shall develop and document evaluation reports to support Command Systems Evaluation Review Board (SERB)/Executive SERB (E-SERB) PTIP reviews.

5.13.5.3 The contractor shall provide Divisional Summary Briefs.

5.13.5.4 The contractor shall provide post-test Fact Sheet draft.

5.13.5.5 The contractor shall provide post-test Fleet Brief draft.

5.13.5.6 The contractor shall provide Lessons Learned.

5.13.5.7 The contractor shall review the system evaluation during PTIP reviews.

5.13.5.8 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of System Evaluation reviews.

5.13.6 Stakeholder Collaboration.

5.13.6.1 The contractor shall make recommendations to the warfare division in accordance with OPTEVFOR processes found in the Test Reporting Handbook, PTIP Checklist, and applicable Best Practices.

5.13.6.2 The contractor shall identify and recommend outside organization(s) for participation and inclusion in PTIP activities.

5.13.6.3 The contractor shall coordinate briefings/meetings in support of OPTEVFOR PTIP activities in accordance with the PTIP Checklist and the appropriate test report templates.

5.13.6.4 The contractor shall participate in briefings/meetings in support of OPTEVFOR PTIP activities in accordance with the PTIP Checklist and the appropriate test report templates.

5.13.6.5 The contractor shall lead briefings/meetings in support of OPTEVFOR PTIP activities in accordance with the PTIP Checklist and the appropriate test report templates.

5.13.6.6 The contractor shall provide a trip report (DELIVERABLE A002) when contract activities occur away from the OPTEVFOR site in Norfolk, VA.

5.13.7 Document and Brief Preparation

5.13.7.1 The contractor shall prepare and document briefings (DELIVERABLE A001) to include the Evaluation Report, Post-Test Brief, Scoring Board, Critical Operational Issue (COI) Evaluation Working Group (CEWG) products, SERB/E-SERB Brief, Data Analysis Summary, and Blue /Gold Sheets.

5.13.7.2 The contractor shall prepare the Risk/Deficiency cover letter, the DAS, and the Test Report per the OT&E Manual, Test Reporting Handbook, and applicable Best Practices.

5.14 Cyber Security Subject Matter Expert/Operational (SME).

5.14.1 Cyber Security Support.

5.14.1.1 IAW the DoD Cybersecurity Test and Evaluation Guidebook 2.0 Series, the contractor shall utilize paragraph F.2.1.2, Cybersecurity Subject Matter Experts and Figure F-2 RASCI Table to assist the OTD and 01D Exploitation Analyst (EA) in cyber test preparations and coordination.

5.14.2 Cyber Survivability Test Planning.

5.14.2.1 Cyber Survivability Test Planning Research

5.14.2.2 The Contractor shall perform Cyber Survivability Test Planning Research in accordance with Cyber Test Planning Process guidance.

5.14.2.3 The contractor shall review and identify technical documents required to support Cyber Survivability Test Planning.

5.14.2.4 The contractor shall identify need dates for all required technical documents and provide dates to the OTD/OTC.

5.14.2.5 The contractor shall identify previous and planned Cyber Survivability tests that may contribute to current Cyber Survivability efforts.

5.14.2.6 The contractor shall conduct a Cyber Survivability level of test review with Warfare Division and Code 01D.

5.14.2.7 The contractor shall coordinate with Fleet Resources and the OTD/OTC to determine asset availability in support of Cyber Security objectives.

5.14.2.8 The contractor shall develop and provide a Cyber Survivability POA&M to support the test planning effort.

5.14.2.9 The contractor shall identify and provide risk management and recertification baseline concerns for communication to the Program Management Office (PMO).

5.14.2.10 The contractor shall document the test planning research in a Cyber Survivability Test Plan document.

5.14.2.11 The contractor shall review the test planning research during Cyber Survivability reviews.

5.14.2.12 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of test planning research during Cyber Survivability Test Planning reviews.

5.14.3 Cyber SUT/SoS and Schedule Development.

5.14.3.1 The Contractor shall perform Cyber Survivability SUT/SoS and Schedule Development in accordance with Cyber Test Planning Process guidance.

5.14.3.2 The contractor shall identify and document the system attack surface.

5.14.3.3 The contractor shall identify and document the system attack vectors.

5.14.3.4 The contractor shall develop and document Cyber Survivability Test Plan site visit objectives.

5.14.3.5 The contractor shall develop and document the test execution schedule.

5.14.3.6 The contractor shall document the SUT/SoS and Schedule in a Cyber Survivability Test Plan document.

5.14.3.7 The contractor shall review the SUT/SoS and Schedule during Cyber Survivability reviews.

5.14.3.8 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of SUT /SoS and Schedule during Cyber Survivability Test Planning reviews.

5.14.4 Cyber Survivability Test Plan Site Visit.

5.14.4.1 The contractor shall perform Cyber Survivability Test Plan Site Visit in accordance with Cyber Test Planning Process guidance.

5.14.4.2 The contractor shall coordinate dates, attendance lists, and documentation requirements with the PMO prior to execution of the site visit.

5.14.4.3 The contractor shall develop and conduct an informal site visit in-brief covering the purpose of the site visit and what the site visit personnel should expect.

5.14.4.4 The contractor shall collect and document information to validate initial elements of the critical components list, system configuration differences from provided documentation, and technical SME support requirements for test execution.

5.14.4.5 The contractor shall provide a post-visit trip report (DELIVERABLE A002) documenting site visit activities and actions when contract activities occur away from the OPTEVFOR site in Norfolk, VA.

5.14.5 Cyber Survivability Final Technical Planning.

5.14.5.1 The Contractor shall perform Cyber Survivability Final Technical Planning in accordance with Cyber Test Planning Process guidance.

5.14.5.2 The contractor shall develop and document the preliminary set of anticipated attack surfaces and vectors to be used during test execution.

5.14.5.3 The contractor shall develop and document the final Cyber Survivability Critical Components list to be used for test execution.

5.14.5.4 The contractor shall develop and document the Cyber Survivability test objectives.

5.14.5.5 The contractor shall develop and document any Cyber Survivability test limitations, with corresponding mitigations.

5.14.5.6 The contractor will collect and incorporate go/no-go criteria from Code 01D test personnel.

5.14.5.7 The contractor shall document the final technical planning in a Cyber Survivability Test Plan document.

5.14.5.8 The contractor shall review the final technical planning during Cyber Survivability reviews.

5.14.5.9 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of final technical planning during Cyber Survivability reviews.

5.14.6 Cyber Survivability Test Plan Finalization.

5.14.6.1 The Contractor shall perform Cyber Survivability Test Plan Finalization in accordance with Cyber Test Planning Process guidance.

5.14.6.2 The contractor shall develop and document data requirements for test execution.

5.14.6.3 The contractor shall coordinate with Code 01D to determine test equipment and required resources for execution.

5.14.6.4 The contractor shall document the test plan finalization in a Cyber Survivability Test Plan document.

5.14.6.5 The contractor shall review the test plan finalization during Cyber Survivability reviews.

5.14.6.6 The contractor shall provide meeting minutes, to include any required comment resolution matrix for issues, to document the results of test plan finalization during Cyber Survivability reviews.

5.15 Government Training.

5.15.1 The Contractor is eligible to take OPTEVFOR provided training, including (but not limited to) Operational Test Director (OTD) Basic Course (OBC), Advanced MBTES Course, Test Planning Course, Post Test Iterative Process (PTIP) Course, Blue/Gold Sheet Writing Course, and Reliability, Maintainability, Logistic Supportability and Availability (RMLA) Course. Contractors are encouraged to stay updated on course updates to ensure training currency. All courses provided by OPTEVFOR are filled on a "First come first serve" basis.

5.15.2 Training class availability and registration can be obtained by contacting the Training Department located in CA-495. The primary points of contact are the Workforce Development Officer or Training Administrator. Instructions for sign up can be found on the OPTEVFOR public home page under Command Training: <https://flankspeed.sharepoint-mil.us/sites/OPTEVFOR/SitePages/01A-Division-Workforce-Development.aspx>.

5.15.3 The Contractor shall comply with any specific training required at the Task Order level.

5.15.4 Task Orders may provide training requirements. NOTE: Some Task Orders may require completion of specific training at date of award due to Program scheduled events.

5.16 Administrative Support.

5.16.1 The Contractor shall provide the Technical Point of Contact (TPOC) with Monthly Status Reports. Monthly Status Reports should provide sufficient detail and organization to allow OTDs to track progress, performance, and funds expenditure at the program level.

5.16.2 The Contractor shall provide program management input and attendance to divisional leadership meetings as needed to coordinate overall level of effort and support to assigned tasks, conferences/meetings attended, work plans, and the expenditure of funds and/or labor hours during the month.

5.17 Financial Tracking and Support.

5.17.1 The contractor shall provide financial tracking for the complete execution of this contract. Financial status shall be reported to the government in the Monthly Status Report (DELIVERABLE A003).

6.0 Deliverables. The Government reserves the right to specify deliverables at the task order level. Data items required from the contractor are specified in the Contract Data Requirements List (DELIVERABLE), DD Form 1423. Not every DELIVERABLE will apply to each order. Quantities, delivery dates, and other particulars will be identified in the individual task orders issued under this contract.

6.1 DELIVERABLE A001, Test and Evaluation Documents or Briefs.

- o Final Test and Evaluation documents, including but not limited to IEFs, test plans, and test reports.
- o Draft products supporting OPTEVFOR test design, test planning, and post-test reporting milestone meetings (touchpoints, IPRs, SERBs, etc.).
- o Products supporting TEMP or MTS development.
- o Products supporting Modeling and Simulation efforts.
- o Other products as necessary supporting Test and Evaluation efforts as required by the government.
- o Meeting minutes.

6.2 DELIVERABLE A002, Trip Report.

- o The contractor shall prepare a trip report detailing information issued at the program meeting attended within five (5) working days after returning to home base from the meeting.
- o Contractor format acceptable.

6.3 DELIVERABLE A003, Monthly Status Report (MSR).

- o The contractor shall prepare a progress, performance and funds expenditure report by the 10th of the month starting one month after contract award, unless otherwise agreed upon with the OTD.
- o Contractor format acceptable.

7.0 Receipt and Acceptance of Deliverables.

7.1 All Deliverables (NIPR or SIPR) listed at the task order level will be delivered by the Contractor in accordance with the Quality Assurance

Surveillance Plan (QASP) under the overarching awarded contract. These delivered items shall be sent in an email by the contractor to the divisional representatives (applicable recipients identified at the task order award kick-off) and upon receipt the government will acknowledge receipt via email. Final acceptance by the government shall be considered once the draft document has made smooth and has been signed by the responsible signatory (i.e. ACOS or Commander) or the submitted document is accepted at the requisite level as determined by OT&E Manual (formerly OTD Manual). This email will facilitate the formal government's position for the respective product. Review of these deliverables may require more than two independent reviews (QA/QC) by the contractor during its process through the iBOSS document routing system before it is determined smooth and accepted by the government.

7.2 All government furnished Non-Secure Internet Protocol Router (NIPR) templates to be to be used by the contractor shall only be obtained from the following source authoritative source, the OT Resource Library on the OPTEVFOR SharePoint site:
<https://flankspeed.sharepoint-mil.us/sites/OPTEVFOR/SitePages/01A-Division-OT-Resources.aspx>

8.0 Minimum Personnel Requirements. The contractor will submit within their proposal for support at the Task Order Level their proposed labor categories and skill sets to ensure successful performance of the requirements identified within the PWS. As described in the minimum personnel requirements, relative and comparative emphasis is given where applicable between the testing, analytical and/or writing competencies within respective labor categories.

8.1 If the Government questions the qualifications or competence of any person performing under the contract, the burden of proof to sustain the person as qualified as prescribed herein shall be upon the Contractor

8.2 If the customer does not identify a Labor Category at the task order level during the request for proposal, it will be up to the Offeror to determine which Labor Categories and Qualifications to propose (which must include those identified within the signed contract at the awarded rates) they will propose at the Task Order level to achieve success.

8.3 Requirements for All Offerors. All personnel proposed in support of this contract shall:

8.3.1 Possess U.S. citizenship.

8.3.2 Possess familiarity with MS-Office software.

9.0 Government Labor Categories.

9.1 Program Manager (PM).

9.1.1 No specified education requirements.

9.1.2 Must have 4 years (within the last 6 years) of experience in planning and organizing work tasks, developing test plans, collecting data, and performing reconstruction and analysis for test and evaluation. This requirement may also be satisfied by similar planning and execution experience in tactical/operations related efforts.

9.1.3 Must have current working knowledge of the Navy and multi-service missions, operations, logistics, management, and organizational responsibilities. This may be satisfied by officer/enlisted warfare qualification and fleet experience, Navy staff billet, prior recent contractor support roles, or similar examples within the last four years.

9.1.4 Must have working knowledge of the DoD 5000 series, SECNAVINST 5000 series, and OPNAVINST 5000.42 series instructions. This may be satisfied by completion of the OPTEVFOR OBC/IEF/Test Planning courses or DAWIA T&E Level I or equivalent.

9.1.5 Must have demonstrated the ability to lead effectively within the naval community and have a demonstrated ability to communicate the results of the operational analysis to sponsoring activities and decision makers.

9.1.6 Proficient in developing Plan of Actions and Milestones for delivering Operational Test and Evaluation or related products.

9.2 Test and Evaluation Manager (TEM).

9.2.1 Bachelor's Degree required, STEM degree. 8+ Years of USW mission execution experience at the USW senior enlisted (e.g. ANAV, Sonar LCPO, Fire Control LCPO, etc) or Department Head and above level can be substituted for education requirement.

9.2.2 Must have T&E Experience 4 years (within the last 6 years), such as IEF development, Test Plan Development, Test Execution, Test Analysis and Reporting, and Modeling and Simulation experience supporting developmental or operational testing or Navy Test and Evaluation experience.

9.2.3 Must have 4+ years of USW mission execution experience, with at least two years at the senior enlisted or Department Head and above level OR have 8+ years of system-level experience operating/maintaining/testing (any cumulative combination) USW systems.

9.2.4 Must have current working knowledge of the Navy and multi-service missions, operations, logistics, management, and organizational responsibilities. This may be satisfied by officer/enlisted warfare qualification and fleet experience, Navy staff billet, prior recent contractor support roles, or similar examples within the last four years.

9.2.5 Must have working knowledge of the DoD 5000 series, SECNAVINST 5000 series, and OPNAVINST 5000.42 series instructions. This may be satisfied by completion of the OPTEVFOR OTD/IEF/Test Planning courses or DAWIA T&E Level I or equivalent.

9.2.6 Must have demonstrated the ability to lead effectively within the naval community and have a demonstrated ability to communicate the results of the operational analysis to sponsoring activities and decision makers.

9.3 Test and Evaluation Engineer (TEE).

9.3.1 Bachelor's degree, required, STEM degree. 8+ Years of USW mission execution experience at the USW senior enlisted (e.g. ANAV, Sonar LCPO, Fire Control LCPO, etc) or Department Head and above level can be substituted for education requirement.

9.3.2 Must have T&E Experience (2 of last 4 years), such as IEF development, Test Plan Development, Test Execution, Test Analysis and Reporting, and Modeling and Simulation experience supporting developmental or operational testing. OPTEVFOR experience.

9.3.3 Must have 2+ years of USW mission execution experience at the senior enlisted or Department Head and above level OR have 4+ years of system-level experience operating/maintaining/testing (any cumulative combination) of USW systems.

9.3.4 Must have current working knowledge of the Navy and multi-service missions, operations, logistics, management, and organizational responsibilities. This may be satisfied by officer/enlisted warfare qualification and fleet experience, Navy staff billet, or prior recent contractor support roles within the last four years.

9.3.5 Must have working knowledge of the DoD 5000 series, SECNAVINST 5000 series, and OPNAVINST 5000.42 series instructions. This may be satisfied by completion of the OPTEVFOR OTD/IEF/Test Planning courses or DAWIA T&E Level I or equivalent.

9.3.6 Must have demonstrated the ability to function effectively within the naval community and have a demonstrated ability to communicate the results of the operational analysis to sponsoring activities and decision makers.

9.4 Senior Test and Evaluation Analyst (STEA).

9.4.1 Must have an AS/BA/BS Degree. Five years of uniformed military service may be substituted for the education requirement.

9.4.2 Must have T&E Experience (2 of last 4 years), such as IEF development, Test Plan Development, Test Execution, Test Analysis and Reporting, and Modeling and Simulation experience supporting developmental or operational testing. OPTEVFOR experience.

9.4.3 Operational USW experience.

9.5 Junior Test and Evaluation Analyst (JTEA).

9.5.1 No specified education requirements.

9.5.2 T&E Experience, such as IEF development, Test Plan Development, Test Execution, Test Analysis and Reporting, and Modeling and Simulation experience supporting developmental or operational testing.

9.5.3 Operational USW experience.

9.6 Cyber Security Subject Matter Expert/Operational (SME).

9.6.1 The following qualifications and certifications where specified are required for the Cyber Security Subject Matter Expert (SME), must be TS Eligible.

9.6.2 DoDM 8140.03 series, Cyberspace Workforce Qualification AND Management Program

9.6.3 DoD Directive 8140.01 Cyberspace Workforce Management

9.6.4 4 Year Degree in one of the following:

Computer Science

Computer/Electrical engineering

Systems Engineering (technical)

Aeronautical engineering

AND

9.6.5 Proficiency in decomposing complex computer systems/networking configurations in support of system exploitation analysis

9.6.6 Ability to perform detail-oriented work quality assurance/quality control prior to delivery to the government.

OR

9.6.7 Minimum 2 years of DoD cybersecurity experience AND Minimum 2 years' experience in one of the following:

Network engineering

Programming (C/C++, python, Bash, etc.)

Systems test engineering

Project management

Penetration testing

AND

9.6.8 Proficiency in decomposing complex computer systems/networking configurations in support of system exploitation analysis

9.6.9 Ability to perform detail-oriented work quality assurance/quality control prior to delivery to the government.

9.7 Data Engineer (DE).

9.7.1 In addition to the minimum requirements for all positions, the candidate must have an undergraduate or graduate degree in one of the following disciplines:

Data Science, Computer/Information Science, Information Systems Management, Archives/Digitization Management, Management of Information Systems, Mathematics, or Engineering, or course work that required the development or adaptation of computer programs and systems and provided knowledge equivalent to a major in the Data Science field.

9.7.2 Must have demonstrated experience and proficiency in data analysis functions such as but not limited to data mining, data cleaning, data integration, data reduction/manipulation, data transformation, data visualization, and data analysis of small to large data sets.

9.7.3 Must have demonstrated proficiency in data analysis in a programming or statistical software suite such as: R, Python, SAS, SPSS, STATA, Tableau, and/or PowerBI for small to large data sets.

9.7.4 Must be proficient in the design, implementation, and operation of data management systems to support management of applicable test data.

9.7.5 Must have demonstrated experience in the development of data collection plans to include methods, and storage of raw and processed test data.

9.7.6 Must have experience in the verification and validation of data collection and accreditation plans in support of test planning.

9.7.7 Must have experience in the coordination of the equipment necessary to implement data collection during test.

9.7.8 Experience and/or working knowledge of the incorporation of Artificial Intelligence (AI)/ Machine Learning (ML) into data analysis software is preferred.

9.7.9 Knowledge of the following topic areas are:

Database Management

Analysis of structured and unstructured data

Backend database technologies (SQL, NoSQL, HPC, etc.),

9.7.10 Possess a Certified Analytics Professional certification.

10.0 Security. Security Clearance Required. Specific clearance level requirements will be individually identified at each task order level.

10.1 The minimum-security clearance required of all personnel is SECRET.

10.2 It is anticipated that some personnel will require to be eligible for a security clearance of TOP SECRET.

10.3 Clearance requirements above SECRET will be identified at the Task Order level, therefore the offeror must be able to provide a contractor (when required at the Task Order level) with a minimum-security clearance of TOP SECRET Eligible.

10.4 TS/SCI will be specified at the task order level as required. Any personnel proposed to work on any effort shall be eligible for necessary clearances to immediately begin performance at the time of task award.

10.5 Specific security requirements will be identified on a separate DD254 at time of task order award.

10.6 SCI level requirements shall be handled in accordance with OPTEVFOR Instruction 4310.1 series, Operational Test and Evaluation Force Sensitive Activity and Intelligence Related Contracting Program (SAIRC).

10.7 All Contractors shall also have a current TOP SECRET FACILITIES clearance at the time of proposal submission.

11.0 General Information.

11.1 Quality Assurance Surveillance Plan. The Government will monitor the Contractor's performance to ensure compliance with contract requirements, inclusive of the terms and conditions, in accordance with the QASP.

11.2 Personal Services. This is not a personal services contract. The contractors/sub-contractors should be well educated in respect to "personal services". No one (Government employee or military) may task the contractor to perform work that is not listed in the task order, nor do the contractors take direction in the performance of their task (except in response to a security or safety matter) from anyone other than their corporate manager and/or prime contractor, as appropriate.

11.3 Privity Defined. The legal term that defines the relationship between two parties of a contract, does not exist between the Government and the sub-contractor. Therefore, the Prime contractor is responsible for ensuring, through its own internal processes, that quality work is performed and delivered on time, by any subcontractors to meet the objectives of the prime contract. Formal direction to sub-contractors flows only through the prime contractor. There can be simultaneous communication between the prime contractor and the subcontractor, but the Government and the subcontractor cannot bypass the prime contractor to communicate directly with each other.

11.4 ADP Requirements. The Government will provide, as required, the necessary computer, and workstation/system access for on-site work.

11.4.1 Those offerors (contractor personnel) assigned as off-site will be determined at time of task order award if they are to be assigned government furnished ADP assets based on available CIO On Hand IT assets that are available for issuance. Priorities shall be determined based on overall impact to support under that task order.

11.4.2 Additionally, the onsite offerors assigned ADP Government Furnished Property will be held accountable to respond to the government's ADP inventory to ensure 100% accountability of all ADP assets.

11.4.3 Any offeror not adhering to this call for inventory of ADP assets may be directed to forfeit their ADP GFP at no additional cost to the government. IAW FAR 52.245-1

11.5 Common Access Card (CAC)/Public Key Infrastructure (PKI), System Authorization Access Request (SAAR-N). All contractor personnel requiring access to Government Information Technology (IT) systems shall have an approved System Authorization Access Request (SAAR-N) Form OPNAV 2875 (Rev May 2022) on file, and complete required Annual Information Awareness Training. New employees must submit their SAAR forms upon checking in of their first day of work. SAAR-N forms are available at: <https://flankspeed.sharepoint-mil.us/sites/OPTEVFOR/SitePages/WelcomeAboard.aspx>.

11.5.1 Completed DD Form 2875, System Authorization Access Request (SAAR-N), Work Authorization Memo (WAM), and training certificates for the online training courses required for DoD network access (list provided to each Prime at task order award) shall be submitted to the Command Information Office (CIO). All forms and certificates must be submitted using the OPTEVFOR Service Desk portal at <https://optevforservicedesk.navy.mil>.

11.6 Common Access Cards (CAC) / Local Badges. Contractor CACs will be approved using the Trusted Agent Sponsorship (TAS) system and issued by the Government to on-site contractor personnel and shall be visible at all times while personnel are at the Government site.

11.6.1 The contractor shall furnish all requested information required to facilitate issuance of identification badges and shall conform to all instructions/guidance required by the facility.

11.6.2 The Government will provide the contractor access to Government facilities, as required, for performance of tasks under this contract. Contractor personnel shall comply with the instructions/guidance required by your facility.

11.6.3 All CACs issued to Contractor employees shall be returned to the Government Security Department at the Government site in accordance with the instructions/guidance required by your facility following completion of the contract, relocation or termination of an employee, or upon request from the Contracting Officer's Representative.

11.7 Contracting Officer and Representative. Only a duly appointed Procuring Contracting Officer (PCO), and no other government personnel, is authorized to change the specifications, terms and conditions under this contract. The OPTEVFOR Contracting Officer's Representative (COR) is responsible for technical management of this contract, and will serve as the Contracting Officer's Primary Point of Contact. The COR shall oversee execution of this PWS and resolve any potential issues. The COR is responsible for: liaising with OPTEVFOR personnel and Contractor personnel on site; contractual advice, recommendations and clarification regarding the statement of work; delivery of this PWS placed under this contract; providing an independent government estimate of the effort described in the statement of work; quality assurance of services performed and acceptance of the services or deliverables; government furnished property; security requirements aboard government installations; providing the PCO or his/her designated Ordering Officer with appropriate funds for issuance of the delivery; and the certification of invoice for payment.

11.8 Authorized Changes only by the Contracting Officer

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Contracting Officer is: See Individual Task Order.

11.9 CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, IT SYSTEMS OR PROTECTED HEALTH INFORMATION.

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Definition. As used in this clause - Military installation means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department, or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense (see 10 U.S.C. 2801(c)(4)).

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager (CSM) upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Training. Contractor employees who require routine physical access to a Federally controlled facility or military installation shall complete "Level I Antiterrorism Awareness Training" prior to gaining access to a facility and annually thereafter in accordance with DoDI O-2000.16 Vol. 1. In accordance with Department of Defense Instruction O-2000.16 Volume 1, DoD Antiterrorism (AT) Program Implementation: DoD AT Standards, Level I Antiterrorism Awareness Training shall be completed by:

1. Completion of "Level I Antiterrorism Awareness Training" available at <https://jkodirect.jten.mil/pdf/at1/launch.html>; or
2. Under the instruction of a qualified Level I Antiterrorism Awareness instructor; or
3. By providing a training certificate for "Level I Antiterrorism Awareness Training" training showing completion within the last calendar year.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, prior to being granted access to a Federally controlled facility or military installation.

Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts, including subcontracts for commercial items, when subcontractor performance requires routine physical access to a Federally-controlled facility or military installation.

OPERATION SECURITY (OPSEC)

It is DoD policy according to DoD Directive 5205.02E, "DoD Operations Security (OPSEC) Program," June 20, 2012, as amended to establish and maintain OPSEC programs to ensure national security-related missions and functions are protected.

Training: Contractor employees shall comply with all DoD OPSEC requirements and complete "OPSEC Awareness for Military Members, DoD Employees and Contractor" training within 30 days of onboarding the contract and annual refresher training thereafter. Training shall be completed through a DoD sponsored and certified computer or web-based learning instruction available at <https://securityawareness.usalearning.gov/opsec/index.htm>.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after training is completed by all employees and subcontractor personnel.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance as of the performance start date.

Definition of "productive":

- a. OF-306 signed by contractor employee
- b. FD-258 Fingerprint Card (Contingent upon availability of electronic fingerprinting submission)
- c. Completed Electronic Investigation (e-QIP)
- d. All contractor employees with need for a Common Access Card (CAC) must have an active Defense Information System for Security (DISS) profile.

e. Common Access Card (CAC)

f. DISS Visit Request submitted (Contingent upon classification of work being performed, Confidential, Secret, Top Secret).

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services and no reimbursement will be paid by the government for efforts expended during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEM

In accordance with DON CIO Memorandum (IT LEVEL DESIGNATION ON DD FORM 2875 SYSTEM AUTHORIZATION ACCESS REQUEST) 08 September 2020, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as Privileged, Enhanced, or Authorized users. All user level accesses may include positions which require access to Controlled Unclassified Information (CUI). CUI includes sensitive information protected under the Privacy Act, to include Protected Health Information (PHI). IT System levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged access, (when specified by the terms of the contract) require a Tier 5 (T5) or T5R equivalent investigation, which is a higher level investigation than the Tier 3 (T3) and T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Contractors requiring Enhanced access, (when specified by the terms of the contract) require a T3, T3R, or equivalent investigation, which is a higher level investigation than the Tier 1 (T1) described below. Due to the enhanced system access, an investigation suitable for Moderate Risk national security positions is required.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy CSM and ISSM/IAM manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the Contracting Officers Representative (COR) shall sign the SAAR-N as the supervisor.

The SAAR-N shall be forwarded to the CSM upon contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all contractor employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The contractor's security representative shall contact the CSM for guidance when reinvestigations are required.

INTERIM ACCESS

The CSM may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

ACCESS TO CONTROLLED UNCLASSIFIED INFORMATION

Safeguarding sensitive unclassified information is critical to achieve NAVSUP Modernization efforts and deliver cutting-edge and uncompromised capabilities. The Secretary of Defense's operations security (OPSEC) campaign plan stresses the importance of protecting controlled unclassified information (CUI). CUI encompasses OPSEC, critical technology, intelligence, and personally identifiable information that, if not properly identified, marked, and controlled, could impair NAVSUP's ability to conduct its mission. Contractor employees with access to Controlled Unclassified Information (CUI) shall comply with DoDI 5200.48 - Controlled Unclassified Information (CUI) and complete DoD approved initial and annual refresher CUI training.

- a. Whenever Government provides CUI to, or CUI is generated by, non-DoD entities, all CUI records must be handled as required by the approved mandatory disposition authority.
- b. All CUI records must follow the approved mandatory disposition authority whenever the Government provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and the DoDI 5200.48.
- c. Contractor employees shall monitor CUI aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information.

d. Contractor employees shall submit unclassified government information for review and approval for release in accordance with the Standard DoD Component Processes, DoDI 5230.09, and DoDM 5205.07, Volume 1.

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the contractor's security representative. Within three (3) work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the contractor's security representative. The contractor's security representative shall be the primary point of contact on any security matter. The contractor's security representative shall not be replaced or removed without prior notice to the Contracting Officer and CSM.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. If the Security Office validates the contractor's position is Non-Critical Sensitive or if the IT system user level is determined to be Enhanced, at a minimum, each contractor employee must be a US citizen and have a favorably completed T3, T3R, or equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or Enhanced position. The investigation consists of a standard National Agency Check and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or Enhanced position is required to complete:

SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)
Two FD-258 Applicant Fingerprint Cards or electronic fingerprint submission (preferred))
Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinstituted as required to ensure investigations remain current (not older than ten (10) years) throughout the contract performance period. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's ISSM/IAM. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the CSM upon the contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential or provide the required documentation shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM. Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

For classified contracts, if the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Access Request (VAR) via the Defense Information Security System (DISS). If the contractor employee does not have a current favorably adjudicated investigation, the contractor shall submit the Visit Access Request in DISS until the contractor employee has at a minimum an interim clearance. If the contract only requires access to unclassified information, even if the contractor takes a DISS "owning" role over the contractor employee, the Navy Command will also take a DISS "owning" role over the contractor employee during the hiring process and for the duration of assignment under that contract. If the contract requires access to classified information, the contractor's Facility Security Office (FSO) will take a DISS "ownership" role and the Navy command will take a DISS "servicing" role during the hiring process and the duration of assignment under that contract. All VARs requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc...) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

Must be either a U.S. citizen or a U.S. permanent resident with a minimum of 3 years of legal residency in the U.S. (as required by the Deputy Secretary of Defense DTM 08-006 or its subsequent DoD Instruction (INST)) and
Must have a favorably completed NACI or T1 investigation or equivalent including a FBI fingerprint check prior to installation access.

To be considered for a favorable trustworthiness determination, the CSR must submit for all employees each of the following:

SF-85 Questionnaire for Non-Sensitive Positions
Two FD-258 Applicant Fingerprint Cards (or the preferred method - electronic fingerprint submission)
Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably completed NACI or T1 equivalent investigation or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM.

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

12.0 Acronyms. Below is a standard list of acronyms used withing the contract and typically used within a Task Order:

ACCM Alternative Compensatory Control Measures
ADP Automated Data Processing
AEMP Acoustic Engineering Measurement Program
APB Advanced Processing Build
ARCI Submarine Acoustic Rapid Commercial-off-the-Shelf Insertion
ASW Anti-Submarine Warfare
ATO Authority to Operate
AUTEC Atlantic Underwater Test and Evaluation Center
AWG Analysis Working Group
CAC Common Access Card
CBASS Common Broadband Advanced Sonar System
CCS Combat Control System
CDD Capability Development Document
CDR Critical Design Review
CDRL contract data requirements list
CEWG COI Evaluation Working Group
CIPT Capabilities Integrated Product Team
CLIN Contract Line Item Number
CNO Chief of Naval Operations
CoC Chain Of Command
COI Critical Operational Issue
OPTEVFOR Operational Test and Evaluation Force
COMUSFLTFORCOM Commander United States Fleet Forces Command
CONOPS Concept of Operations
CONUS Continental United States
COR Contracting Officer Representative
COT Concept of Test
OTF Operational Test and Evaluation Force
OPTEVFORINST Operational Test and Evaluation Force Instruction
COTS Commercial Off the Shelf
CPD Capabilities Production Document
CPS Conventional Prompt Strike
CRAW Compact Rapid Attack Weapon
CRM Comment Resolution Matrix
CSIS Common Submarine Imaging System
CSO Communications Systems Officer
CSRR Common Submarine Radio Room
DAS Data Analysis Summary
DAWIA Defense Acquisition Workforce Improvement Act
DCP Data Collection Plan
DMAP Data Analysis and Management Plan
DMOT Detailed Method of Test
DOD Department of Defense
DOE Design of Experiments
DT Developmental Test
EDM Engineering Design Model
ESERB Executive System Evaluation Review Board
FY Fiscal Year
GAO Government Accountability Office
GUI Graphical User Interface
HM&E Hull, Mechanical, and Electrical
HWT Heavy Weight Torpedo
IA Information Assurance
IAW In Accordance With
IBR Integrated Baseline Review
ICD Initial Capabilities Document
IEF Integrated Evaluation Framework
ILSP Integrated Logistics Support Plan
IG Inspector General
IMTP Integrated Master Test Plan
IOT&E Initial Test and Evaluation
ISR Intelligence, Surveillance, and Reconnaissance
ISSM Information Systems Security Manager
IT Integrated Test
ITT Integrated Test Team
JCTD Joint Concept Technology Demonstration
JMETL Joint Mission Essential Task Lists
JMP Johns Macintosh Project
KPP Key Performance Parameters

LAB Large Aperture Bow Array
LBUCS Low Band Universal Communications System
LCCA Low Cost Conformal Array
LCPO Leading Chief Petty Officer
LDUUV Large Diameter Unmanned Undersea Vehicle
LOO Letter of Observation
LTE Lead Test Engineer
LVA Large Vertical Array
LWWAA Light Weight Wide Aperture Array
LWT Light Weight Torpedo
M&S Modeling and Simulation
MBTD Mission Based Test Design
MBTES Mission Based Test and Evaluation System
MCS Mission Communications System
MNS Mission Needs Statement
MOE Measures of Effectiveness
MOS Measures of Suitability
MSR Monthly Status Report
MST Maritime Strike Tomahawk
MTP Master Test Plan
NGCM Next Generation Countermeasure
NMETL Navy Mission Essential Task Lists
NTSP Navy Training System Plan
OA Operational Assessment
OAR Operational Assessment Report
OCONUS Outside the Continental United States
ODC Other Direct Cost
OER Operational Evaluation Report
OFER Operational Test Agency Follow-on Evaluation Report
OMAR Operational Milestone Assessment Report
ONI Office of Naval Intelligence
OPORDS Operation Orders
OPTEVFOR Operational Test and Evaluation Force
ORD Operational Requirements Document
ORSA Operations Research Systems Analyst
OT Operational Test
OT&E Operational Test and Evaluation
OTA Operational Test Agency
OTD Operational Test Director
OTRR Operational Test Readiness Review
PDR Preliminary Design Review
PMO Program Management Office
PMRF Pacific Missile Range Facility
POA&M Plan of Action and Milestones
POE Projected Operational Environment
PRA Platform Risk Approval
PTIP Post Test Iterative Process
PWS Performance Work Statement
QRA Quick Reaction Assessment
RMLA Reliability, Maintainability, Logistic Supportability, and Availability
ROC Required Operational Capability
SECNAV Secretary of the Navy
SERB System Evaluation Review Board
SIMII/STORM Modeling program for Submarines
SLUAS Submarine Launched Unmanned Aerial System
SM Standard Missile
SME Subject Matter Expert
STEM Science, Technology, Engineering, and Mathematics
SURTASS Surveillance Towed Array Sensor System
SUT System Under Test
SUW Anti-Surface Warfare
TA Task Order Assistant
TEIN Test and Evaluation Identification Number
TELECON Telephone Conference
TEMP Test and Evaluation Master Plan
TI Technical Insertion
TP Test Plans
TPOC Technical Point of Contact
UUV Unmanned Undersea Vehicle
V&V Verification and Validation
VCD Verification of Deficiencies
VISTA Visual Interactive System for Training and Analysis

V&V Verification and Validation
VV&A Verification, Validation and Accreditation
WAA Wide Aperture Array
WIPT Working Integrated Product Team
XLUUV Extra Large Unmanned Undersea Vehicle

13.0 Governing References. The following documents (and their included references) provide detailed operational test and evaluation guidance and serve as authoritative sources for CDRLs. Where conflicts exist with other guidance, clarification should be requested from the COR. All references are available from the "OT Resource Library" on the OPTEVFOR Sharepoint site:
<https://flankspeed.sharepoint-mil.us/sites/OPTEVFOR/SitePages/01A-Division-OT-Resources.aspx>.

SECNAVINST 5000.2 (series), Department of the Navy Implementation of the Defense Acquisition System and the Adaptive Acquisition Framework
OPNAV N94 Department of the Navy Acquisition Test and Evaluation Manual (series)
OPTEVFORINST M-3980.2 (series), Operational Test and Evaluation Manual (OT&E Manual)
OPTEVFORINST 5000.1 (series), Use of Modeling and Simulation in Operational Test
OPTEVFOR Handbooks
OPTEVFOR Templates
OPTEVFOR Best Practices
OPTEVFOR Mission Based Test Design Integrated Evaluation Framework (MBTD-IEF) Checklist (series)
Director, Operational Test and Evaluation (DOT&E) Test and Evaluation Master Plan (TEMP) Guidebook (series)

Requirements

This requirement is in support of the Undersea Warfare Division (Code 40), which tests and evaluates all undersea warfare systems, including submarine, surface, aviation, and UUV anti-submarine warfare and mine warfare systems under the most operationally realistic conditions possible. The divisions main effort is to assist, through early involvement, in the acquisition process, conduct tests, and provide timely and accurate evaluations to characterize system performance and resulting capability.

The contractor shall provide support in evaluating the operational effectiveness and suitability of the system under test that has been assigned to OPTEVFOR for OT and E in accordance with the processes and procedures prescribed in the Operational Test and Evaluation Manual (M-3980.2 (series)). Further specified requirements include test design, test planning, modeling and simulation support, test execution, post-test iterative process and reporting, and cyber survivability test planning.

Continuation of Packaging and Marking

All deliverables shall be packaged and marked IAW Best Commercial Practices.

Continuation of Inspection and Acceptance

QASP

Purpose: To ensure that the government has an effective and systematic method of surveillance for the services in the PWS. The QASP will be used primarily as a tool by the contractor and the government to verify that the contractor is performing all services required by the PWS in a timely, accurate and complete manner.

1. Critical performance processes and requirements. Critical to the performance of these services is the timely, accurate and thorough completion of all contract/task order requirements.
2. Quality Definitions.
 - a. Milestones. A milestone is any meeting, defined as part of a test design, test planning, modeling and simulation validation or test reporting process as outlined in references listed in section 13 of this document, or any Test and Evaluation (T&E) meeting outlined by a formal or informal T&E WIPT determination. Informal or intermediate milestones may also be established by the government at the discretion of the Operational Test Director (or similar government representative); this informal milestone may also be referred as a "deadline" or "due date" etc.
 - b. Deliverables.
 - i. Any test document or product considered to be the final test document meant for routing to signature by the government as outlined in Table 2-4 of the OPTEVFOR M-3980.2 series. This includes but is not limited to Integrated Evaluation Frameworks, Test Plans, and Test Report products. in accordance with the specific work statement for a program. The contractor retains responsibility for performing any work specified in the Statement of Work until the specific test document or product is signed by the appropriate authority.
 - ii. Any intermediate test document or product created or edited by the vendor that is not considered to be a T&E document, as defined in QASP paragraph 2.b.i, intended to be in support of a final document deliverable. This includes all read ahead material to support intermediate or final Mission Based Test Design, Test Planning, Test Reporting, or other efforts directed by the government in accordance with the specific work statement for a program.
 - iii. Any draft test document or product developed for collaboration with the government or T&E stakeholders for intermediate or final test documents that is not considered to be a T&E document, as defined in QASP paragraph 2.b.i or 2.b.ii, purposed to be in support of a final document deliverable.
 - c. Quality Scale. In general terms, comments regarding quality may be described in the following terms:
 - i. **Critical (C)** comments are provided because sections in the document appear to be or are potentially incorrect, incomplete, missing pertinent T&E information, or not in accordance with the prescribed applicable template. Critical comments preclude the test team from proceeding to meet the next scheduled milestone.
 - ii. **Substantive (S)** comments are provided because sections in the document appear to be or are potentially unnecessary, have minor incorrect, incomplete, misleading, confusing information, or inconsistencies with other sections that do not preclude the test team from proceeding to meet the next scheduled milestone.
 - iii. **Administrative (A)** comments are provided because sections in the document appear to contain typographical, formatting, or grammatical errors. Administrative comments do not preclude the test team from proceeding to meet the next scheduled milestone.
 - iv. The government designated representative shall qualify each comment (or group of comments) with its appropriate level of criticality (C, S, A) to support First Pass Yield (FPY) determinations, when appropriate.
3. Performance Standards
 - a. Schedule - The due dates for deliverables and the actual accomplishment of the schedule will be assessed against original due dates and milestones established for the contract or task order(s).

- b. Performance Metric (Schedule). An accepted schedule metric of above 95 percent (>95%) FPY for delivery of all intermediate or final test document or products on time related to prescribed deadlines provided by the designated government representative. If the contractor does not provide a test document or product due to schedule slip by the contractor resulting in a missed deadline (termed here as a 'schedule defect'), it will result in a failure to meet the FPY performance metric.
- c. Timeliness of Deliverables.
- i. Intermediate Test Product Deadline. Delivery of all intermediate test product (i.e. read ahead material) shall be provided to the Warfare Division Section Head (or designated representative) for acceptance by the government in accordance with timelines outlined in the applicable published checklist, handbook, best practice, etc. These publications are posted to the OPTEVFOR SharePoint site (NIPR) or OT&E Reference Library folder or OT&E Production Library folder on the Y: drive (SIPR).
 - ii. Draft Test Product Collaboration. The contractor may submit draft or "working" versions of the intermediate test product to the Operational Test Director (OTD), Lead Test Engineer (LTE), etc. as required to enable collaboration, obtain early feedback, or facilitate efforts to resolve T&E issues or questions within the document. Review of a draft product shall not be considered as "Submission of Deliverables to the Government" and draft Test Product Collaboration shall not delay or disrupt required schedule of delivery for intermediate or final test product deadlines.
 - iii. Schedule Slip due to Government Induced Delays. Inherent to the acquisition process, a program may experience a schedule slip due to various factors. These "Government Induced Delays" may impact or affect the timelines for deliverables as outlined in the Statement of Work for each Task Order (TO). In the event of a Government Induced Delay, it is the responsibility of the OTD, Section Head, and contractor assigned to the specific TO, to alert the Warfare Division Deputy Director or their alternate at the soonest possible time. The OTD, Section Head, LTE and contractor shall assess the impact of the delay on schedule deadlines provided to the contractor. If the delay is significant enough to prevent the contractor from submitting deliverables on time, the OTD (or designated government representative) shall discuss the potential impact to the overall schedule with the Contracting Officer Representative (COR) and contractor to determine if a formal modification to the overall schedule with an updated schedule for deliverables (to include intermediate test products) is required.
 - iv. Schedule Slip due to Contractor Delays. If the contractor fails to submit deliverables to the government, not due to government induced delays or where an adjusted deadline has not been approved by the designated government representative, this will be considered a schedule slip due to contractor delays. Any unplanned schedule slip due to a contractor delay must be forecasted as soon as recognized to the government representative by the contractor to afford corrective mitigation to the acquisition schedule.
- d. Deliverables - The deliverables section required to be submitted will be assessed against the specifications for the deliverables detailed in the contract/task order(s) and the Quality Control Plan (QCP), if required by the contract, for the required content, quality, timeliness, and accuracy.
- i. Submission of Deliverables to the Government. All Deliverables listed will be delivered by the Contractor in accordance with the Quality Assurance Surveillance Plan (QASP). For determination of "**Timeliness**", the contractor shall submit deliverables via email to the OTD, Section Head, and other applicable recipients identified at time of task order award and/or during execution during the Period of Performance (PoP). Upon receipt, the Section Head will send an email to the Warfare Division Deputy Director facilitating the formal government's position for the respective product for timeliness and/or accuracy within 48 hours upon receipt of the deliverable. The Warfare Division Deputy Director or alternate will forward a copy of this email to the Contracting Officer's Representative (COR) and prime vendor representative for the TO as required; the email will become part of the COR folder for that respective TO.
 - ii. Government Induced Errors (GIE) after Contractor submission to the Government. A government induced error is defined as an error that was determined to be qualitatively or quantitatively incorrect from the original contractor's submission of that deliverable to the government. Any GIE identified shall not be counted as part of the First Pass Yield (FPY) as described in paragraph 3.e. of this document.
 - iii. Acceptance of Deliverables by the Government. Any test document, as outlined above in QASP paragraph 2.b.i, is accepted by the government when the specific test document or product is signed by the appropriate authority. Any intermediate deliverable, as outlined above in QASP paragraph 2.b.ii, is accepted by the government when the Section Head, OTC, or OTD (if delegated) has approved the deliverable to be issued as read ahead material for a test product milestone meeting or document routing for signature. Acceptance by the government may be via memorandum, e-mail (preferred), or verbal statement (followed by an email). Acceptance by the government states it now has sole responsibility for that document.
- e. Performance Standard for Acceptable Quality Level.

i. An accepted quality metric of above 95 percent (>95%) FPY is desired for delivery of all intermediate or final test document or products without administrative, substantive, or critical comments related to document quality (termed here as a 'quality defect'). This is also defined as 'No rework required'.

ii. FPY percentage is defined as **number of documents accepted** by the government for the first time for an intended purpose divided by the **total number of documents provided** to the government for the first time for an intended purpose, **multiplied by 100**. Draft test documents or products will not count towards FPY until formally submitted to the government for an intended purpose to meet intermediate or final test product milestones.

$$\text{FPY} = \frac{\text{number of documents accepted}}{\text{total number of documents provided}} \times 100$$

iii. Any comment related to the lack of specific System Under Test (SUT) or programmatic information required for a T&E document is not considered to be a quality defect.

iv. If, at any time, the FPY is below 85 percent (<85%), or the government perceives repetitive or consistently poor performance regardless of FPY metrics, the issue shall be referred to the COR for further action.

f. **Past Performance** - In addition to any schedule and deliverable aspects of performance discussed above, pursuant to FAR 42.15, the government will assess the contractor's record of conforming to contract requirements and to standards of good workmanship, the contractor's adherence to contract schedules including the administrative aspects of performance, the contractor's history of reasonable and cooperative behavior and commitment to customer satisfaction, and the contractor's business-like concern for the interest of the customer.

4. **Surveillance methods:** The primary methods of surveillance used to monitor performance of this contract will include, but not be limited to, random or planned sampling, periodic inspection, and validated customer complaints.

5. **Performance Measurement:** Performance will be measured in accordance with the following table:

Performance Element	Performance Requirement	Surveillance Method	Frequency	Acceptable Quality Level
Contract Deliverable A001	T&E Documents or Briefs	Periodic /Customer Input	Planned/Task Order Initiated	>95% of deliverables submitted timely and without rework required
Contract Deliverable A002	Trip Report	Periodic /Customer Input	Planned/Task Order Initiated	>95% of deliverables submitted timely and without rework required
Contract Deliverable A003	Monthly Status Report (MSR)	Periodic /Customer Input	Monthly starting after the first month of contract award.	>95% of deliverables submitted timely and without rework required
Contract Deliverable A003	Financial Status Report	Periodic /Customer Input	Monthly starting after the first month of contract award.	>95% of deliverables submitted timely and without rework required

Overall Contract Performance	Overall contract performance of sufficient quality to earn a minimum Satisfactory rating in the COR's annual report on contractor performance	Assessment by the COR	Annual or at completion of performance	All performance elements rated Satisfactory (or higher)
Invoicing	Invoices per contract procedures are timely and accurate.	Review and acceptance of the invoice	As specified in contract	100% accuracy
DFARS clause 252.239-7001, Information Assurance Contractor Training and Certification	100% compliance with the clause (As required)	100% surveillance	As specified in DFARS clause 252.239-7001	100% compliance
FAR clause 52.222-50, Combating Trafficking in Persons	100% compliance with the clause	100% surveillance	As specified in FAR clause 52.222-50	100% compliance

If performance is within acceptable levels, it will be considered to be satisfactory. If not, overall performance may be considered unsatisfactory.

6. Incentives/Disincentives:

The COR makes an annual report on contractor performance Contractor Performance Assessment Reporting System (CPARS) or other annual report. The contractor's failure to achieve a minimum satisfactory performance under the contract/task order, reflected in the COR's annual report, may result in termination of the contract/task order and may also result in the loss of future government contracts/task orders. The contractor's failure to achieve a minimum satisfactory performance under the contract/task order may result in the non-exercise of any available options, if applicable.

For each item that does not meet acceptable levels, the government may issue a Contract Discrepancy Report (CDR). CDRs will be forwarded to the Contracting Officer with a copy sent to the contractor. The contractor must reply in writing within 5 days of receipt identifying how future occurrences of the problem will be prevented. Based upon the contractor's past performance and plan to solve the problem, the Contracting Officer will determine if any further action will be taken.

For fixed-price contracts/orders, in accordance with the inspection of services provisions, the contractor will be incentivized to provide quality products in a timely manner since the government can require the Contractor, at no additional cost, to replace or correct work that fails to meet contract requirements.

(End of QASP)

COMMUNICATIONS DURING THE LIFE OF THE CONTRACT (SEP 2015)

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicates with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and, notwithstanding provisions contained elsewhere in this contract, the said authority remains solely the Contracting Officer's. In the event the contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Principal Contracting Officer is:

Paul Cofield

paul.b.cofield.civ@us.navy.mil

(757) 443-1454

NOTICE OF INCLUSION OF AN ORGANIZATIONAL CONFLICT OF INTEREST CLAUSE (SEP 2015)

a) This solicitation contains a clause entitled Organizational Conflict of Interest, pursuant to FAR subpart 9.5, which is to be included in any contract to be awarded hereunder. Prospective offerors are requested to furnish with their proposals, information pertaining to any existing contract between the offeror and the companies engaged in furnishing to the United States Government any services or supplies pertaining to the development, production or analysis of any of the weapon systems, equipment or programs identified in the statement of work of this solicitation or listed below, if any, which may have a bearing on any existing or potential conflict of interest within the meaning of the clause in the Schedule. Such information shall include:

1. The identity of the company
2. A description of the work to be performed under the contract with the company or the relationship between the offeror and the company
3. The dollar amount of the contract or any other ownership interest
4. The period of performance
5. A description of the internal control taken by the offeror to avoid potential organizational conflict of interest, and
6. Any other information requested by the Contracting Officer.

b) The basis for including an OCI clause is: that the contractor may gain access to proprietary information of other companies during contract performance.

c) This solicitation contains a clause entitled Organizational Conflict of Interest which is to be included in the contract to be awarded hereunder. The language of this clause is subject to revision, based on questions/concerns raised by prospective offerors to the attention of the Contracting Officer prior to solicitation closing.

ORGANIZATIONAL CONFLICT OF INTEREST (SEP 2015)

(a) Definitions - In this clause:

(i) "Contractor" means the firm signing this contract;

(ii) "System Supplier" means any firm engaged in or having a known or prospective interest in the development, production, or analysis of the weapon system, equipment or program which are identified in the statement of work of this contract.

(iii) "Affiliates" means employees or officers of the contractor and first tier subcontractors involved in the performance of this contract, or in the decision making process concerning this contract.

(iv) "Interest" means organizational or financial interest.

(v) "Term of this Contract" means the period of performance plus any extensions thereto.

(b) Warranty Against Existing Conflicts of Interest

(i) The contractor warrants that it and its affiliates do not have any contracts with or any substantial interest in the system suppliers identified in the statement of work of this contract, other than those disclosed to the Government and listed in the Section L solicitation provision entitled "Notice of Inclusion of an Organizational Conflict of Interest clause."

(ii) The contractor recognizes that during the term of this contract additional weapon system, equipment or programs may be identified and added to the statement of work of this contract as a result of contract modifications. In such event, the contractor agrees to immediately disclose to the Government information concerning any contract or interest between the contractor and its affiliates and any system supplier if the contract or interest arises during the term of this contract.

(iii) The contracting officer shall have the sole discretion to determine whether a potential organizational conflict of interest exists concerning any interest or contract which arises or is identified during the term of this contract. The contracting officer may take such steps as are necessary in the best interest of the Government to eliminate potential conflict of interest.

(c) Restrictions on Contracting

(i) The contractor agrees that during the term of this contract, and for a period of **24 months** thereafter, neither it nor its affiliates shall (1) enter into any contract for supplies, services or materials, related to the work under this contract with the system suppliers; (2) create for themselves any interest in the system suppliers; (3) consult or discuss with the system supplier any aspects of work under this contract; or (4) furnish to the United States Government, either as a prime contractor or as a subcontractor any component of a system it has worked on or had access to under this contract.

(ii) The contractor further agrees that neither it nor its affiliates will conduct a review nor make recommendations under this contract concerning any item which is the product of work performed by the contractor or its affiliates under any other contract.

(iii) To the extent that the contractor or its affiliates are required to create a specification or develop recommendations for future work to be competed under this contract or any other contract, the contractor agrees, that during the term of this contract, and for a period of **24 months** thereafter, that neither it nor its affiliates shall enter any contract action for the performance of work resulting from the specification or recommendations.

(d) Non-Disclosure of Proprietary Data

Certain information of a proprietary nature may be submitted to the Government by a system supplier. While performing under this contract, the prime contractor and any subcontractors may receive this information. The prime contractor and any subcontractors agree to use and examine this information exclusively in the performance of this contract and to take the necessary steps to prevent

disclosure of such information to any party outside the Government, as long as it remains proprietary. The contractor and the subcontractors agree to indoctrinate their affiliates who will have access to this information as to the proprietary nature of the information and the relationship under which they have possession of the information. Affiliates will also be informed that they may not engage in any other action, venture or employment where this information will be used for profit of any party other than the party furnishing this information. Additionally, the contractor and subcontractor agree to execute agreements to this effect with companies providing proprietary data for performance under this contract. The contractor and subcontractors will restrict access to proprietary information to the minimum number of employees for performance of this contract.

(e) Government Remedy

The contractor agrees that any breach or violation of the warranties, restrictions, disclosures or non-disclosures set forth in this conflict of interest clause shall constitute a material and substantial breach of terms, conditions, and provisions of the contract and that the Government may, in addition to any other remedy available, terminate the contract for default.

APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE (SEP 2015)

(a) The Contracting Officer hereby designates the following individual as Contracting Officer's Representative(s) (COR) for this contract:

Timothy Burrows

timothy.r.burrows.civ@us.navy.mil

1 (757) 450-9486

(b) In the absence of the COR named above, all responsibilities and functions assigned to the COR shall be the responsibility of the alternate COR acting on behalf of the COR. The Contracting Officer hereby appoints the following individual as the alternate COR:

N/A

CONTRACT ADMINISTRATION PLAN (CAP) FOR FIXED PRICE, INDEFINITE DELIVERY, CONTRACTS

In order to expedite the administration of this contract, the following delineation of duties is provided. The names, addresses and phone numbers for these offices or individuals are included elsewhere in the contract award document. The office or individual designated as having responsibility should be contacted for any questions, clarifications or information regarding the administration function assigned.

1. The Procuring Contract Office (PCO) is responsible for:

- a. All pre-award duties such as solicitation, negotiation and award of contracts.
- b. Any information or questions during the pre-award stage of the procurement.
- c. Freedom of Information inquiries.
- d. Changes in contract terms and/or conditions.
- e. Post award conference.

2. The Contract Administration Office (CAO) is responsible for matters specified in FAR 42.302, except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein.

3. The paying office is responsible for making payment of proper invoices after acceptance is documented.

4. The Ordering Officer is responsible for:

- a. Requesting, obtaining and evaluating proposals for orders to be issued.
- b. Select the most advantageous offer to the Government for individual Task Orders in accordance with contract provisions. Determining that the price /estimated cost of the order is fair and reasonable for the effort proposed.
- c. Obligating the funds by issuance of the delivery order/task order.

- d. Authorizing the contractor to begin performance.
- e. Providing subcontract approval.
- f. Monitoring direct costs on orders issued.

NOTE: The PCO and the Ordering Officer may be the same individual, but in no case shall the COR perform the duties of the Ordering Officer.

5. The Contracting Officer's Representative (COR) is responsible for interface with the contractor and performance of duties such as those set forth below. It is emphasized that only the PCO/CAO has the authority to modify the terms of the contract. In no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the government. If in the opinion of the contractor an effort outside the scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action may be taken by the contractor unless the PCO or CAO has issued a contractual change. The COR duties are as follows:

a. Technical Interface

- (1) The COR is responsible for all Government technical interface concerning the contractor and furnishing technical instructions to the contractor. These instructions may include: technical advice/recommendations/clarifications of specific details relating to technical aspects of contract requirements; milestones to be met within the general terms of the contract or specific subtasks of the contract; or, any other interface of a technical nature necessary for the contractor to perform the work specified in the contract or order. The COR is the point of contact through whom the contractor can relay questions and problems of a technical nature to the PCO.
- (2) The COR is prohibited from issuing any instruction which would constitute a contractual change. The COR shall not instruct the contractor how to perform. If there is any doubt whether technical instructions contemplated fall within the scope of work, contact the PCO for guidance before transmitting the instructions to the contractor.

b. Contract Surveillance

- (1) The COR shall monitor the contractor's performance and progress under the contract. In performing contract surveillance duties, the COR should exercise extreme care to ensure that he/she does not cross the line of personal services. The COR must be able to distinguish between surveillance (which is proper and necessary) and supervision (which is not permitted). Surveillance becomes supervision when you go beyond enforcing the terms of the contract. If the contractor is directed to perform the contract services in a specific manner, the line is being crossed. In such a situation, the COR's actions would be equivalent to using the contractor's personnel as if they were government employees and would constitute transforming the contract into one for personal services.
- (2) The COR shall monitor the contractor's performance to see that inefficient or wasteful methods are not being used. If such practices are observed, the COR is responsible for taking reasonable and timely action to alert the contractor and the PCO to the situation.
- (3) The COR will take timely action to alert the PCO to any potential performance problems. If performance schedule slippage is detected, the COR should determine the factors causing the delay and report them to the PCO, along with the contractor's proposed actions to eliminate or overcome these factors and recover the slippage. Once a recovery plan has been put in place, the COR is responsible for monitoring the recovery and keeping the PCO advised of progress.
- (4) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a Contractor Performance Assessment Report (CPAR) in the CPARS Automated Information System (AIS). The initial CPAR, under an eligible contract, must reflect evaluation of at least 180 days of contractor performance. The completed CPAR, including contractor comments if any, (NOTE: contractors are allowed 30 days to input their comments) should be available in the CPARS AIS for reviewing official (PCO) review no later than 270 days after start of contract performance. Subsequent CPARs covering any contract option periods should be ready at 1-year intervals thereafter.

c. Invoice Review and Approval/Inspection and Acceptance

- (1) The COR is responsible for quality assurance of services performed and acceptance of the services or deliverables. The COR shall expeditiously review copies of the contractor's invoices or vouchers, certificate of performance and all other supporting documentation to determine the reasonableness of the billing. In making this determination, the COR must take into consideration all documentary information available and any information developed from personal observations.
- (2) The COR must indicate either complete or partial concurrence with the contractor's invoice/voucher by executing the applicable certificate of performance furnished by the contractor.
- (3) The COR will provide the PCO and the CAO with copies of acceptance documents such as Certificates of Performance.
- (4) Upon completion of all services under the contract, the COR shall work with the Contractor to obtain and execute a final invoice no more than 60 days after completion of contract performance. The COR shall ensure that the invoice is clearly marked as a "Final Invoice."

d. Contract Modifications/Orders Under Indefinite Delivery Contracts.

- (1) The COR is responsible (if necessary) for developing the statement of work for tasking orders, change orders, or modifications and for preparing an independent government cost estimate of the effort described in the proposed statement of work.
- (2) The COR shall provide available and relevant Past Performance information with each request for new Task Orders. The COR shall review and

evaluate the contractor's proposal and furnish comments and recommendations

e. Administrative Duties

(1) The COR is responsible for taking appropriate action on technical correspondence pertaining to the contract and for maintaining files on each contract. This includes all modifications, government cost estimates, contractor invoices/vouchers, certificates of performance, DD 250 forms and contractor's status reports.

(2) The COR shall maintain files on all correspondence relating to contractor performance, whether satisfactory or unsatisfactory, and on trip reports for all government personnel visiting the contractor's place of business for the purpose of discussing the contract.

(3) The COR must take prompt action to provide the PCO with any contractor or technical code request for change, deviation or waiver, along with any supporting analysis or other required documentation.

f. Government Furnished Property. When government property is to be furnished to the contractor, the COR will take the necessary steps to ensure that it is furnished in a timely fashion and in proper condition for use. The COR will maintain adequate records to ensure that property furnished is returned and/or that material has been consumed in the performance of work.

g. Security. The COR is responsible for ensuring that any applicable security requirements are strictly adhered to.

h. Standards of Conduct. The COR is responsible for reading and complying with all applicable agency standards of conduct and conflict of interest instructions.

i. Written Report/Contract Completion Statement.

(1) The COR is responsible for timely preparation and submission to the PCO, of a written, annual evaluation of the contractors performance. The report shall be submitted within 30 days prior to the exercise of any contract option and 60 days after contract completion. The report shall include a written statement that services were received in accordance with the Contract terms and that the contract is now available for close-out. The report shall also include a statement as to the use made of any deliverables furnished by the contractor. For contracts where delivery orders are issued, one consolidated report which addresses all actions under the contract may be submitted.

(2) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a final Contractor Performance Assessment Report (CPAR) in the CPARS with 30 days of contract completion.

(3) The COR is responsible for providing necessary assistance to the Contracting Officer in performing Contract Close-out in accordance with FAR 4.804, Closeout of Contract Files.

7. The Technical Assistant (TA), if appointed, is responsible for providing routine administration and monitoring assistance to the COR. The TA does not have the authority to provide any technical direction or clarification to the contract. Duties that may be performed by the TA are as follows:

a. Identify contractor deficiencies to the COR.

b. Review contract/delivery order deliverables, recommend acceptance/rejection, and provide the COR with documentation to support the recommendation.

c. Assist in preparing the final report on contractor performance for the applicable contract/delivery order in accordance with the format and procedures prescribed by the COR.

d. Identify contract noncompliance with reporting requirements to the COR.

e. Evaluate the contractor's proposals for specific delivery orders and identify, for the COR, any potential problems, areas of concern, or issues to be discussed during negotiations.

f. Review contractor status and progress reports, identify deficiencies to the COR, and provide the COR with recommendations regarding acceptance, rejection, and/or Government technical clarification requests.

g. Review invoices for the appropriate mix of types and quantities of labor, materials, and other direct costs, and provide the COR with recommendations to facilitate COR certification of the invoice.

h. Provide the COR with timely input regarding technical clarifications for the statement of work, possible technical direction to provide the contractor, and recommend corrective actions.

i. Provide detailed written reports of any trip, meeting, or conversation to the COR subsequent to any interface between the TA and contractor.

CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES (SEP 2015)

In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual/position designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned.

1. PROCURING CONTRACTING OFFICER (PCO) is responsible for:
 - a. All pre-award information, questions, or data;
 - b. Freedom of Information inquiries;
 - c. Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
 - d. Arranging the post award conference (See FAR 42.503).

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2. CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.

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paul.b.cofield.civ@us.navy.mil
(757) 443-1454

3. DEFENSE CONTRACT AUDIT AGENCY (DCAA) is responsible for audit verification/provisional approval of invoices and final audit of the contract prior to final payment to the contractor.

Not Applicable.

4. PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

DFAS

5. CONTRACTING OFFICERS REPRESENTATIVE (COR) is responsible for:
 - a. Liaison with personnel at the Government installation and the contractor personnel on site;
 - b. Technical advice/recommendations/clarification on the statement of work;
 - c. The statement of work for delivery/task orders placed under this contract.
 - d. An independent government estimate of the effort described in the definitized statement of work;
 - e. Quality assurance of services performed and acceptance of the services or deliverables;
 - f. Government furnished property;
 - g. Security requirements on Government installation;
 - h. Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery/Task order; and/or
 - i. Certification of invoice for payment.

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order; or until the issue has otherwise been resolved. THE COR IS NOT AN ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE THE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY/TASK ORDER.

Timothy Burrows
timothy.r.burrows.civ@us.navy.mil
1 (757) 450-9486

In the event that the COR named above is absent due to leave, illness, or official business, all responsibilities and functions assigned to the COR will be the responsibility of the alternate COR listed below:

Not Applicable.

6. TECHNICAL ASSISTANT, if assigned by the requiring activity, is responsible for providing technical assistance and support to the COR in contract administration by:

- a. Identifying contractor deficiencies to the COR;
- b. Reviewing contract/delivery/task order deliverables and recommending acceptance/rejection of deliverables;
- c. Identifying contractor noncompliance of reporting requirements;
- d. Evaluating contractor proposals for specific contracts/orders and identifying areas of concern affecting negotiations;
- e. Reviewing contractor reports providing recommendations for acceptance/rejection;
- f. Reviewing invoices for appropriateness of costs and providing recommendations to facilitate certification of the invoice;
- g. Providing COR with timely input regarding the SOW, technical direction to the contractor and recommending corrective actions; and
- h. Providing written reports to the COR as required concerning trips, meetings or conversations with the contractor.

Not Applicable.

7. ORDERING OFFICER is responsible for:

- a. Requesting, obtaining, and evaluating proposals for orders to be issued;
- b. Determining the estimated cost of the order is fair and reasonable for the effort proposed;
- c. Obligating the funds by issuance of the delivery/task order;

- d. Authorization for use of overtime;
- e. Authorization to begin performance; and/or
- f. Monitoring of total cost of delivery/task orders issued.

The following limitations/restrictions are placed on the Ordering Officer:

- a. Type of order issued is limited by this contract to the contract type or types covered by this contract and to any limitations on the warrant of the individual placing the orders;
- b. No order shall be placed in excess of \$2,000,000.00 without the prior approval of the PCO; and/or
- c. No order shall be placed with delivery requirements in excess of one year, excluding options.

Name: Any Warranted Contracting Officer
Address: 1968 Gilbert Street, Suite 600. Norfolk, VA 23511

ADDITIONAL ORDERING OFFICER WITH AUTHORITY TO ISSUE ORDERS UP TO \$2,000,000

Name: Henry Bijak
Address: Operational Test & Evaluation Force (OPTEVFOR)
7970 Diven Street
Norfolk, VA 23505
(757) 457-6403
Email: henry.j.bijak.civ@us.navy.mil

(End of text)

SECURITY ADMINISTRATION (SOLICITATION) (SEP 2015)

The highest level of security that will be required under this contract is **Top Secret, with SCI eligibility** as designated on DD Form 254 attached hereto and made a part hereof.

The offeror shall indicate the name, address and telephone number of the cognizant security office;

The facilities to be utilized in the performance of this effort have been cleared to **Top Secret** level.

The offeror should also provide the above information on all proposed subcontractors who will be required to have a security clearance.

SECURITY ADMINISTRATION (CONTRACT) (SEP 2015)

The highest level of security required under this contract is **Top Secret, with SCI eligibility** as designated on DD Form 254 attached hereto and made a part hereof.

The Commander, Defense Investigative Service, Director of Industrial Security, _____ **Region**, is designated Security Administrator for the purpose of administering all elements of military security hereunder.

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination
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	Instructions: All supplies/services will be inspected by the Government and accepted by the Government. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Timothy Burrows, Norfolk Email: timothy.r.burrows.civ@us.navy.mil Telephone: 1 (757) 450-9486
0002	Inspection and Acceptance Location Both Destination Instructions: All supplies/services will be inspected by the Government and accepted by the Government. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Timothy Burrows, Norfolk Email: timothy.r.burrows.civ@us.navy.mil Telephone: 1 (757) 450-9486
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: All supplies/services will be inspected by the Government and accepted by the Government. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Timothy Burrows, Norfolk Email: timothy.r.burrows.civ@us.navy.mil Telephone: 1 (757) 450-9486
Option Line Item 1002	Inspection and Acceptance Location Both Destination Instructions: All supplies/services will be inspected by the Government and accepted by the Government. DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Timothy Burrows, Norfolk Email: timothy.r.burrows.civ@us.navy.mil Telephone: 1 (757) 450-9486

Continuation of Deliveries or Performance

DURATION OF CONTRACT PERIOD (SEP 2015)

(a) This contract shall become effective on **16 May 2026**, or the effective date of award, whichever is later, and the ordering period shall continue in effect during the period ending **15 May 2031** unless terminated in accordance with other provisions herein. Performance under task orders issued under this contract may begin **on the effective date of award** and may continue in effect during the period ending **365 days** after the last day of the ordering period.

- If the ordering period option is exercised, the option shall become effective on **16 May 2031**, or the effective date of the option period, whichever is later, and the option ordering period shall continue in effect during the option ending **15 November 2031** unless terminated in accordance with other provisions herein. Performance under task orders issued under this option may begin on the **effective date of the option period award** and may continue in effect during the period ending **365 days** after the last day of the option ordering period.

(b) Notwithstanding the above, the Contracting Officer may extend the contract ordering period to accommodate the issuance of task orders in accordance with paragraph (e) of "Level of Effort".

Overall Contract Delivery Period

Period of Performance

From 16 May 2026 to 15 Nov 2031

The ordering period above may include unexercised options

Contractor

Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 16 May 2026 to 15 May 2031 Period of Performance From 16 May 2026 To 15 May 2031	1 Unit	Place of Performance DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Timothy Burrows, Norfolk Email: timothy.r.burrows.civ@us.navy.mil Telephone: (757) 450-9486
0002	Delivery Period From 16 May 2026 to 15 May 2031	1 Unit	Place of Performance DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Timothy Burrows, Norfolk Email: timothy.r.burrows.civ@us.navy.mil Telephone: 1 (757) 457-6563

	Period of Performance From 16 May 2026 To 15 May 2031		
Option Line Item 1001	Delivery Period From 16 May 2031 to 15 Nov 2031 Period of Performance From 16 May 2031 To 15 Nov 2031	1 Unit	Place of Performance DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Timothy Burrows, Norfolk Email: timothy.r.burrows.civ@us.navy.mil Telephone: 1 (757) 450-9486
Option Line Item 1002	Delivery Period From 16 May 2031 to 15 Nov 2031 Period of Performance From 16 May 2031 To 15 Nov 2031	1 Unit	Place of Performance DoDAAC: N57023 CountryCode: USA OPERATIONAL TEST AND EVALUATION FORCE, 7970 DIVEN ST NORFOLK, VA 23505-1498 UNITED STATES Timothy Burrows, Norfolk Email: timothy.r.burrows.civ@us.navy.mil Telephone: 1 (757) 457-6563

Continuation of Accounting and Appropriation Data

52.232-18 ADDENDUM

Pursuant to FAR clause 52.232-18, funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract.

LIABILITY, AUTOMOBILE AND WORKMEN'S COMPENSATION INSURANCE (SEP 2015)

The following types of insurance are required in accordance with the clause entitled "INSURANCE-WORK ON A GOVERNMENT INSTALLATION" (FAR 52.228-5) and shall be maintained in the minimum amounts shown:

- (1) Comprehensive General Liability: \$200,000 per person and \$500,000 per accident for bodily injury.
- (2) Automobile Insurance: \$200,000 per person and \$500,000 per accident for bodily injury and \$20,000 per accident for property damage.
- (3) Standard Workmen's compensation and Employer's Liability Insurance (or, where maritime employment is involved, Longshoremen's and Harbor Worker's Compensation Insurance) in the minimum amount of \$100,000.

REIMBURSEMENT OF TRAVEL COST (SEP 2015)

(a) Travel

(1) Area of Travel. Performance under this contract may require travel by contractor personnel. If travel, domestic or overseas, is required, the contractor is responsible for making all needed arrangements for his personnel. This includes but is not limited to the following:

Medical Examinations
Immunization
Passports, visas, etc.
Security Clearances

All contractor personnel required to perform work on any U.S. Navy vessel will have to obtain boarding authorization from the Commanding Officer of the vessel prior to boarding.

(2) Travel Policy. The Government will reimburse the contractor for allowable travel costs incurred by the contractor in performance of the contract and determined to be in accordance with FAR subpart 31.2, subject to the following provisions:

Travel required for tasks assigned under this contract shall be governed in accordance with rules set forth for temporary duty travel in FAR 31.205-46.

(3) Travel. Travel, subsistence, and associated labor charges for travel time are authorized, whenever a task assignment requires work to be accomplished at a temporary alternate worksite.

Travel performed for personal convenience and daily travel to and from work at contractor's facility will not be reimbursed.

(4) Per Diem. Per diem for travel on work assigned under this contract will be reimbursed to employees consistent with company policy, but not to exceed the amount authorized in the Department of Defense Joint Travel Regulations.

(5) Shipboard Stays. Whenever work assignments require temporary duty aboard a Government ship, the contractor will be reimbursed at the per diem rates identified in paragraphs C8101.2C or C81181.3B(6) of the DOD Joint Travel Regulations,

Volume 2.

(6) Air/Rail Travel. In rendering the services, the contractor shall be reimbursed for the actual costs of transportation incurred by its personnel not to exceed the cost of tourist class rail, or plane fare, to the extent that such transportation is necessary for the performance of the services hereunder and is authorized by the Ordering Officer. Such authorization by the Ordering Officer shall be indicated in the order or in some other suitable written form.

NOTE: To the maximum extent practicable without the impairment of the effectiveness of the mission, transportation shall be tourist class. In the event that only first class travel is available, it will be allowed, provided justification therefore is fully documented and warranted.

(7) Private Automobile. The use of privately owned conveyance within the continental United States by the traveler will be reimbursed to the contractor at the mileage rate allowed by Joint Travel Regulations. Authorization for the use of privately owned conveyance shall be indicated on the order. Distances traveled between points shall be shown in standard highway mileage guides. Any deviations from distance shown in such standard mileage guides shall be explained by the traveler on his expense sheet.

(8) Car Rental. The contractor shall be entitled to reimbursement for car rental, exclusive of mileage charges, as authorized by each order, when the services are required to be performed outside the normal commuting distance from the contractor's facilities. Car rental for TDY teams will be limited to a rate of one car for every four (4) persons on TDY at one site.

Status of Force Agreement

It is the contractor's responsibility to review, understand, and comply with all SOFA and country-specific requirements applicable to this contract.

SOFA status defines the benefits received by the contractor and/or the contractor's dependents. These benefits include, but are not limited to, commissary, postal, military banking privileges, on-base education and access to United States military medical facilities. The SOFA status usually defines the prosecution for criminal offenses in the USG OCONUS court system and laws as opposed to the Host Nation judicial system and laws but that will vary by location.

The resultant contract will have performance locations in OCONUS locations as detailed in the Performance Work Statement. Additional information on traveling outside of the United States can found by accessing the Foreign Clearance Guide located at <https://www.fcg.pentagon.mil/fcg.cfm> and the respective Area of Responsibility (AOR) Geographic Combatant Command (GCC) webpage located at <https://www.acq.osd.mil/asda/dpc/cp/cc/aor.html>.

Synchronized Pre-deployment and Operational Tracker (SPOT) System:

SPOT has been designated as the Joint Enterprise contractor management and accountability system to provide a central source of contingency contractor information. Contractor shall maintain by name accountability within SPOT of all contract personnel assigned to this contract. The Government will use SPOT for oversight and potential source of contractor Letter of Authorization (LOA) for each contractor personnel traveling. Information on registration and use of SPOT may be found at spot.outreach@us.army.mil.

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		
52.203-3	Gratuities.	Apr 1984		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.222-41	Service Contract Labor Standards.	Aug 2018		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.227-7015	Technical Data-Commercial Products and Commercial Services.	Jan 2025		
252.227-7037	Validation of Asserted Restrictions on Technical Data.	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.222-42 Statement of Equivalent Rates for Federal Hires. (May 2014)

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5 332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage	Fringe Benefit
01052 DATA ENTRY OPERATOR II	GS-3	39.40%
30084 ENGINEERING TECHNICIAN IV	GS-7	39.40%
30085 ENGINEERING TECHNICIAN V	GS-9	39.40%
30086 ENGINEERING TECHNICIAN VI	GS-11	39.40%

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: **CMMC Level 1 (Self)** for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

=====
(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

=====
(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	To be completed in task orders.
Issue By DoDAAC	==
Admin DoDAAC	==
Inspect By DoDAAC	==
Ship To Code	==
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==
LPO DoDAAC	==
DCAA Auditor DoDAAC	==

Other DoDAAC(s)	_____
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(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.204-2	Security Requirements.	Mar 2021		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.232-18	Availability of Funds.	Apr 1984		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.242-13	Bankruptcy.	Jul 1995		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.247-34	F.o.b. Destination.	Jan 1991		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials. (Alternate I)	Sep 2014	Alternate I	Sep 2014
252.239-7001	Information Assurance Contractor Training and Certification.	Jan 2008		
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.225-7987	Requirements for Contractor Personnel Performing in the U.S. Southern Command Area of Responsibility (DEVIATION 2021-O0004)	Feb 2021	Deviation 2021-O0004	Feb 2021

FAR Clauses Incorporated by Full Text

52.217-8 Option to Extend Services. (Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 1 day prior to the expiration of the contract.

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far/part-52> and <https://www.acquisition.gov/dfars/part-252-solicitation-provisions-and-contract-clauses>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)

(Oct 2025) Deviation 2025-O0004 (Mar 2025)

Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (MAR 2025) (DEVIATION 2025-O0003 and 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (Dec 2023) of 52.204-30.

☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☐ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-7.

☒ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (Nov 2016) of 52.219-9.

☐ (iii) Alternate II (Nov 2016) of 52.219-9.

☐ (iv) Alternate III (Jun 2020) of 52.219-9.

☐ (v) Alternate IV (Jan 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (Mar 2020) of 52.219-13.

☒ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☒ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

- ☒ (26) (i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-28.
- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).
- ☐ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).
- ☒ (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).
- ☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).
- ☐ (33) [Reserved]
- ☐ (34) [Reserved]
- ☒ (35) (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- ☐ (ii) Alternate I (Jul 2014) of 52.222-35.
- ☒ (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- ☐ (ii) Alternate I (Jul 2014) of 52.222-36.
- ☒ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- ☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).
- ☒ (39) (i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ☐ (41) (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- ☒ (47) (i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).
- ☐ (ii) Alternate I (Jan 2017) of 52.224-3.
- ☐ (48) (i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (Oct 2022) of 52.225-1.
- ☐ (49) (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].

- ☐ (iii) Alternate II (Jan 2025) of 52.225-3.
- ☐ (iv) Alternate III (Feb 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).
- ☐ (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ☐ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).
- ☐ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).
- ☒ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- ☐ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).
- ☐ (65)
- (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
- ☐ (ii) Alternate I (Apr 2003) of 52.247-64.
- ☐ (iii) Alternate II (Nov 2021) of 52.247-64.
- (c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]
- ☒ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- ☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).
- ☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- ☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

[X] (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

[X] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

[] (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118 (g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) [Reserved]

(x) [Reserved]

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)

[X] (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-18 Ordering.

(Aug 2020)

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from **16 May 2026, or the effective date of award through 15 May 2031, and 16 May 2031 through 15 November 2031 if the option period is exercised.**

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations.

(Oct 1995)

Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than **\$1.00**, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of **\$10,000,000.00**;

(2) Any order for a combination of items in excess of **the contract ceiling**; or

(3) A series of orders from the same ordering office within **7 days** that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **3 days** after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity.

(Oct 1995)

Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after **365 days beyond the ordering period.**

(End of clause)

52.219-14 Limitations on Subcontracting (DEVIATION 2021-O0008)

(Oct 2022) Deviation 2021-O0008 (Feb 2023)

LIMITATIONS ON SUBCONTRACTING (FEB 2023) (DEVIATION 2021-O0008)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition.* *Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

- (2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);
- (3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;
- (4) Orders expected to exceed the simplified acquisition threshold and that are--
 - (i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
 - (ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);
- (5) Orders, regardless of dollar value, that are--
 - (i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
 - (ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and
- (6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.
- (d) *Independent contractors.* An independent contractor shall be considered a subcontractor.
- (e) *Limitations on subcontracting.* By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--
 - (1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:
 - (i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.
 - (ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.
 - (2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;
 - (3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or
 - (4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.
- (f) The Contractor shall comply with the limitations on subcontracting as follows:
 - (1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--
 - ☒ By the end of the base term of the contract and then by the end of each subsequent option period; or
 - ☐ By the end of the performance period for each order issued under the contract.
 - (2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.
- (g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.
 - (1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.225-7043 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (Jun 2015)

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) *Definition.* " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from Naval Criminal Investigative Service (NCIS), Code 21; telephone, DSN 288-9077 or commercial (202) 433-9077.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

Attachment 1: Pricing Spreadsheet

Attachment 2: Draft DD254

Attachment 3: Wage Determination 2015-4341

Attachment 4: Past Performance Information Form

Attachment 5: Past Performance Report Form

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Oct 2025		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		

FAR Clauses Incorporated by Full Text

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that-

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation*. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable see addendums to FAR 52.212-1 & FAR 52.212-2.

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions*. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition*. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation*. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

Addendum to FAR 52.212-1 Instructions to Offerors--Commercial Products and Commercial Services

The Government intends to award a single Firm-Fixed-Price (FFP), Indefinite Delivery, Indefinite Quantity (IDIQ) contract resulting from this solicitation in accordance with FAR Part 12, Acquisition of Commercial Product and Commercial Services, and FAR Part 15, Contracting by Negotiation. Award will be made to that offeror whose proposal is most advantageous to the Government under the selection criteria set forth in this solicitation. The Government intends to evaluate proposals and award a contract based on initial proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a non-price and price standpoint. However, the Government may contact any or all offerors with questions concerning their responses. The Government reserves the right to award a contract to other than the lowest priced offeror; award a contract without exchanges; or award a contract after exchanges, whichever is in the best interest of the Government.

QUESTIONS: Offerors may submit questions regarding clarification of solicitation requirements to **Amber Bradley via e-mail at amber.v.bradley.civ@us.navy.mil**. It is required that all questions shall be received by **1000 Eastern Time (ET), 09 March 2026**, as time may not permit responses to questions received after that date to be prepared and issued prior to the receipt of proposals.

FOR SUBMISSION OF PROPOSALS:

(1) Proposals shall be submitted electronically no later than the due date of the solicitation via e-mail to **Amber Bradley at amber.v.bradley.civ@us.navy.mil**. Offerors shall comply with the detailed instructions for the format and content of the proposals contained in the solicitation; proposals that do not comply may be considered unacceptable and may render the proposal ineligible for award. All electronic files and versions of offerors proposals shall be compatible with the current release of Microsoft Office Suite version 2016. The offeror shall be responsible for ensuring that their electronic proposals are virus-free.

(2) Submissions are page limited to the maximum number of pages as defined below. These page limitations are inclusive of the executive summary and any charts, diagrams, and/or other graphics. Graphics (including tables) in the proposal may use an alternative font with 8 point size type or larger. Each "page" is defined as one sheet, 8 1/2 " x 11", with at least one inch margins on all sides, using a font with a point size of 10 or greater (e. g., "Times New Roman" style with 10 point font). Lines shall, at a minimum, be single-spaced in Microsoft Word with Microsoft Word Normal character spacing. Pages shall be consecutively numbered. Multiple pages, double pages, two-sided pages, or foldouts will count as an equivalent number of 8 1/2" x 11" pages. Offerors are permitted to submit no more than one page for each of the following, which will not be included in the page count: a cover sheet, list of tables, list of acronyms, list of figures, tabs, and dividers. Tables of contents and any compliance matrices may exceed one page, which will not be included in the page count.

GENERAL:

Proposals shall include the following legend on each page:

Source Selection Information

See FAR 2.101 and 3.104

PROPOSAL CONTENT:

The offer should contain the following items in addition to other information required by this solicitation: The cover page should indicate the following:

- Title of the proposal
- Volume Number (I or II)
- Proposal Category (Factor/Sub-factor)

- Request for Proposal Number
- Name and Address of Offeror, CAGE Code, SAM Unique Entity ID, and applicable Tax I.D. Number
- Point of Contact name, telephone number, and email address
- Proposal valid for 180 days after solicitation closing

Proposals shall be prepared in two (2) separate volumes as follows:

Volume I: Non-Price Proposal

- Factor I - Facilities Clearance
- Factor II - Technical Approach
 - o Sub-factor I: Staffing Approach
 - o Sub-factor II: Performance and Management Approach
- Factor III - Past Performance

Volume II: Price Proposal

- Factor IV - Price

Table of Contents: The table of contents should provide sufficient detail as to allow the important elements to be easily located.

1. Requirements for Style: Each offeror shall submit a proposal that clearly and concisely describes and defines the contractor's response to the requirements contained in the RFP. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective proposal are not desired and may be construed as an indication of the offeror's lack of understanding of cost consciousness. The proposal shall contain all the pertinent information in sufficient detail in the one area of the proposal where it contributes most critically to the discussion of the same information. When necessary, the offeror shall refer to the initial discussion and identify its location within the submitted proposal.

2. Proposal Page Limitations

Volume I - Non-Price Proposal - The following page limitations are established:

Title	Page Limit*
Factor I - Facilities Clearance	No Limit
Factor II - Sub-Factor I: Staffing Approach	10 Pages
Factor II - Sub-Factor II: Performance and Management Approach	10 Pages

Factor III - Past Performance	12 Pages
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Pages submitted in excess of the page limitations described above will not be evaluated.

The Facilities Clearance is not page-limited; however, the Facilities Clearance is to be strictly limited to a copy of the verification. Price Proposal information in the Services Price Worksheet shall be submitted in Microsoft Excel format.

* Page limits represent the maximum pages the Government will evaluate and are not construed as de facto standards for the amount of material expected in the proposal.

Volume II - Price Proposal - is not page limited; however, the Price Proposal is to be strictly limited to price information and completed solicitation documents as described in the General Section at the beginning of this text.

Title	Page Limit*
Factor IV - Price	No limit

IMPORTANT NOTES:

(1) Offerors shall respond to all requirements of the solicitation document. Offerors are cautioned not to alter the solicitation. Hand-carried proposals are not authorized and will not be accepted.

(2) In the event any person who is not a bona fide employee of the offeror participated in the creation, formulation, or writing of any portion of the proposal, a certificate to this effect shall be included in the proposal which shall be signed by an officer of the offeror. Such certificate shall identify the name of the person who is not a bona fide employee, that person's employment capacity, the name of the person's firm, the relationship of that firm to the offeror, and the portion of the proposal in which the person participated.

Volume I: Non-Price Proposal

Factor I - Facilities Clearance:

The offeror shall provide verification that it possesses an active Facility Clearance (FCL) at the Top-Secret level at the time of proposal submission as identified in the PWS. The verification shall be provided via the Defense Counterintelligence and Security Agency's (DCSA) National Industrial Security System (NISS) and obtained no earlier than 30 days prior to the issuance of the solicitation. The Verification request shall include the following: Cage Code, Facility Name, Physical Location, Facility Clearance Status/Level, Status Date/Issue Date, Safeguarding Level, Authorized Access to FCL Limitation, Facility Security Officer, Facility Security Officer Phone Number, DCSA Field Office, and DCSA Officer Phone Number.

Include as an attachment to the solicitation. There is no page limitation

Factor II - Technical Approach:

Sub-factor I - Staffing Approach:

The offeror shall provide a staffing approach that demonstrates the offeror's ability to provide the required support services and hire and retain the appropriate mix of personnel resources with the skill set levels necessary as identified in the PWS. Specifically, offerors shall address the following:

- A proposed methodology for recruitment of personnel meeting the position-dependent experience, certifications, and qualifications delineated in **PWS Sections 8 & 9 (including all sub-sections in PWS Sections 8 & 9)**; the offeror shall detail utilization of the offeror's personnel resources and demonstrated understanding of the skill sets and labor mix required to successfully accomplish the tasks/requirements of the PWS. The offeror shall provide a staffing approach that places a fully qualified workforce available on the period of performance start date, **16 May 2026**.
- An approach to ensure personnel qualifications remain current.
- Methodology for identifying, recruiting, preparing, training, and retention of qualified personnel for performance that demonstrates the offeror's plan to minimize staff turnover. The offeror should provide historical data to substantiate achievements in past recruiting efforts and sustained retention of employees/low employee turnover rates.
- Risks associated with its staffing approach and any risks associated with implementation of its approach to staffing; including a description of any techniques and actions to mitigate such risks and an explanation of whether the techniques and actions identified for risk mitigation have been successfully used by the offeror.
- The offeror shall discuss their methodology of retaining qualified candidates and reducing turnover, and shall provide their historical attrition rates for the past three (3) years for similar work.
- Offerors shall propose a labor mix that demonstrates the ability to successfully execute the full scope of the Performance Work Statement (PWS) within the annual maximum hours specified in the Services Price Worksheet.

NOTE: The above bullets provide guidance for what should be addressed in the staffing approach and are not considered to be sub-factors nor should this be considered an all-inclusive list.

Sub-factor II - Performance and Management Approach:

The offeror shall provide a performance and management approach that demonstrates an understanding of, familiarity with, and ability to perform the specific technical requirements and tasks in **PWS Section 5 (including all sub-sections in PWS Section 5)**, to establish that the offeror is capable of fully providing these services at the level of quality required. The offeror's approach shall provide a plan that clearly describes the management controls, techniques, and procedures that will be used to ensure required work is performed in a timely, responsive, professional, and efficient manner and clearly detail how this effort will be managed within the offeror's corporate organizational structure.

Offerors are not limited to any specific performance and management approach as long as the approach taken meets PWS requirements.

****The Technical submission is limited to 20 pages (10 pages for Staffing Approach and 10 pages for Performance and Management Approach)****

Factor III - Past Performance:

To demonstrate its past performance, the offeror shall identify up to three (3) of its most relevant contracts performed within five (5) years of the solicitation issuance date. Those contracts must also reflect one (1) year of completed performance by the issuance date of the solicitation. Offerors shall provide a detailed explanation demonstrating the relevance of the contracts to the requirements of the solicitation.

For purposes of this solicitation, a contract is defined as a single contract or a single task order placed under an IDIQ contract, a Blanket Purchase Agreement (BPA), or a Federal Supply Schedule (FSS). If an offeror submits the IDIQ contract, FSS contract, or BPA itself, as a reference, then the offeror must identify a) the total number of orders awarded to the offeror during the ordering period in the past five (5) years from the solicitation issuance date; and b) the total dollar amount of those orders. The total dollar amount shall be the sum of the orders actually awarded, not the base contract maximum or ceiling. An "order" is defined as either a delivery order (DO), a task order (TO), technical direction letter (TDL), and/or technical area task (TAT) placed under an IDIQ, a BPA, or an FSS contract. Orders must also meet the recency requirements stated above: each order must be performed within five (5) years of the solicitation issuance date. If an offeror submits an IDIQ contract, an FSS contract, or a BPA itself, as a reference, the ordering period must be at least one (1) year in length and any ordering period prior to the five (5) years before the solicitation date would not be considered. If an IDIQ contract, an FSS contract, or a BPA itself is submitted, as a reference, the offeror shall state the specific experience claimed from the orders (i.e. the offeror shall identify what work was actually completed on the orders and the relevance to this solicitation, as opposed to generically stating that orders were merely awarded). A Past Performance example that does not provide the level of detail required may not be evaluated.

If a proposed subcontractor's past performance is provided as part of the three (3) of its most relevant contracts or efforts, the percentage and type of work to be done by the subcontractor on the solicitation requirement must be stated. The offeror's submittal shall also detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. A Past Performance example which does not detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform may not be evaluated.

If the prime offeror or intended subcontractor/partner submits a past performance example in which it served as a subcontractor, the prime/sub/partner shall detail clearly the work that it performed and the magnitude (dollar value) of that subcontracted work only. A Past Performance example that does not differentiate between the overall contract effort and the subcontractor effort may not be evaluated.

The past performance of subcontractors who will be performing major or critical aspects of the solicitation will be considered as highly as a prime contractor's past performance.

Failure of offerors to provide the required information and level of specificity may result in the contract reference not being evaluated.

With respect to joint ventures, the procuring activity will consider work done individually by each member of the joint venture as well as any work done by the joint venture itself previously. Joint venture references must meet the temporal requirements described herein (within five years and a year of completed performance). Additionally, if a joint venture member submits a past performance reference, the joint venture member shall detail clearly the work that it performed in that effort and the magnitude (dollar value) of that work. A reference that does not differentiate between the overall contract effort and the joint venture member's effort for that reference may not be evaluated. The past performance of a joint venture member who will be performing major or critical aspects of the solicitation will be considered as highly as the joint venture's past performance.

The offeror shall complete a "Past Performance Information Form" for each reference submitted. The form is an attachment to the solicitation.

In addition to the information requested above, offerors shall contact their past performance references and request that each reference complete the Past Performance Report Form and e-mail the completed survey form directly to Amber Bradley at amber.v.bradley.civ@us.navy.mil by the DUE DATE OF PROPOSALS. CPARS may not be submitted in lieu of the Past Performance Report Form. The Government reserves the right to consider past performance report forms received after the due date of the solicitation and to contact references for verification or additional information.

****The Past Performance submission is limited to 12 pages.****

Volume II - Price Proposal

Factor IV - Price:

In addition to the items required in the General Section above, Volume II shall include the following:

- Completed solicitation documents to include signed copies of all amendments, if applicable.
- For the purpose of preparing a price proposal, the offeror shall assume that the period of performance consists of a five-year ordering period, as well as the potential usage of FAR clause 52.217-8 (6 months), Option to Extend Services. Offerors shall use the periods established in the Schedule.
- Unless completed in SAM, "Representations, Certifications and Other Statements of Offerors" completed by the offeror.
- Complete and detailed price breakdown with all supporting documentation.
- This volume shall also include a completed Services Price Worksheet, submitted in accordance with the following instructions.
 - o Separate price information shall be submitted for each year of service, as well as a total summary for the five-year ordering period, as shown in the Services Price Worksheet. Also include pricing for the potential usage of FAR clause 52.217-8, Option to Extend Services. The price for the services shown in this spreadsheet shall include all fully burdened labor required to provide services. The firm-fixed-price annual rates proposed in the pricing spreadsheet will be incorporated into the resultant contract and subsequent task orders.
- Offerors shall propose the Government-provided not-to-exceed travel amounts in their price proposals and the Services Price Worksheet. Offerors shall insert the Government estimated travel plug numbers provided in the chart below in their proposed price, in addition to any applicable General and Administrative (G&A) and/or Overhead (OH) rate in accordance with FAR Part 31 in their accounting system. Only G&A and/or OH indirect costs are allowable if an offeror's accounting system automatically applies it, no profit or fee shall be included in the travel costs.

Period	Period of Performance	Travel
Ordering Period	16 MAY 2026 - 15 MAY 2031	\$ 4,023,158.15
FAR Clause 52.217-8	16 MAY 2031 - 15 NOV 2031	\$ 439,237.49

NOTE: If no G&A and/or OH are proposed, it will be determined that the offeror does not intend to apply any applicable indirect cost to any travel required.

All price and price-supporting information shall be contained in the price proposal. No price information shall be included in any other Volume including cover letters. The offeror is responsible for submitting sufficient information to enable the Government to fully evaluate its price proposal.

****The price submission is not page limited, but is strictly limited to price information.****

In order to be eligible for award, the Offeror shall be a **Service-Disabled Veteran Owned Small Business, under NAICS 541330 exception 2 Engineering Services- Military and Aerospace Equipment and Military Weapons.**

The completion and submission of the above items will constitute an offer (proposal) and will indicate the offeror's unconditional assent to the terms and conditions of this RFP and any attachments hereto. Alternate proposals are not authorized. Objections to any terms and conditions of the RFP will constitute deficiency, which may make the offer un-awardable.

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services.

(Nov 2021)

Evaluation-Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

See addendums to FAR 52.212-1 & FAR 52.212-2.

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

Addendum to 52.212-2, Evaluation--Commercial Products and Commercial Services

The Government intends to award a single Firm-Fixed-Price (FFP), Indefinite Delivery, Indefinite Quantity (IDIQ) contract as a result of this solicitation in accordance with FAR Part 12, Acquisition of Commercial Products and Commercial Services, and FAR Part 15, Contracting by Negotiation. Award will be made to that offeror whose proposal is most advantageous to the Government under the selection criteria set forth in this solicitation. The Government intends to evaluate proposals and award a contract based on initial proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a non-price and price standpoint. However, the Government may contact any or all offerors with questions concerning their responses. The Government reserves the right to award a contract to other than the lowest priced offeror; award a contract without exchanges; or award a contract after exchanges, whichever is in the best interest of the Government.

The Government intends to award a FFP contract to the responsible Offeror whose proposal represents the best value after evaluation in accordance with the factors in the solicitation **by utilizing the Trade-off Source Selection process**. The Offeror's proposal shall be in the form prescribed by and shall contain a response to each of the areas identified in the addendum to FAR 52.212-1 of the solicitation.

The selection of an offeror for award will be conducted in two (2) phases. Phase I will consist of evaluation of Factor I - Facilities Clearance. Offers receiving an "Acceptable" rating in Phase I shall move on to Phase II. Offerors receiving a rating of "Unacceptable" for Factor I - Facilities Clearance are considered un-awardable and will not be further evaluated.

Phase II will consist of evaluation of Factor II - Technical Approach; its sub-factors: Sub-factor I - Staffing Approach and Sub-factor II - Performance and Management Approach, Factor III - Past Performance and Factor IV - Price. The evaluation of proposals that move on to Phase II will consider the Non-Price Proposal to be significantly more important than the Price Proposal. Within Phase II, Factor III is more important than Factor II. Within Factor II, the two (2) sub-factors are weighed equally.

Offerors receiving a rating of "Unacceptable" for Factor II, or any of its sub-factors, are considered un-awardable and will not be further evaluated.

Initially, proposals shall be ranked according to price (from lowest to highest), inclusive of all option pricing. An Offeror's proposed pricing will be determined by adding all extended amounts for the CLINs in RFP Section B.

If the lowest priced Offeror is evaluated to have a Factor I rated as "Acceptable", a Factor II rated as "Outstanding", and a Factor III rated as "Substantial Confidence", that Offeror represents the best value for the Government and the evaluation process stops at this point. Award shall be made to that Offeror without further consideration of any other proposals. However, if the lowest priced Offeror is not evaluated to have a Factor I rated as "Acceptable", a Factor II rated as "Outstanding", and a Factor III rated as "Substantial Confidence", the next-lowest priced Offeror will be evaluated. The evaluation process will continue (in order of price from lowest to highest) until a proposal is evaluated to have a Factor I rated as "Acceptable", a Factor II rated as "Outstanding", and a Factor III rated as "Substantial Confidence". The Government shall then make an integrated best-value award decision between that proposal rated with a Factor I rated as "Acceptable", a Factor II rated as "Outstanding", and a Factor III rated as "Substantial Confidence" and all lower priced awardable proposals.

If no proposals are evaluated with a Factor I rated as "Acceptable", a Factor II rated as "Outstanding", and a Factor III rated as "Substantial Confidence", the Contracting Officer shall make an integrated assessment best-value award decision from among Offerors rated "Acceptable" and "Neutral Confidence" or better.

Although price is not the most important evaluation factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a proposal's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the proposal. If, at any stage of the evaluation, all offerors are determined to have submitted equal, or virtually equal, non-price proposals, price could become the factor in determining which Offeror shall receive the award.

The Government intends to award the contract without exchanges. Accordingly, each Offeror should submit its most favorable terms from a price and non-price standpoint. However, the Government reserves the right to establish a competitive range and conduct exchanges if later determined by the PCO to be necessary.

All proposals will be reviewed for timeliness. If the proposal is received after the closing date and does not meet the criteria for "late proposals" in the solicitation, the proposal will not be opened. Timely proposals will be reviewed for compliance to the solicitation. If the proposal is not compliant to the solicitation, it will not be evaluated and the Offeror will be notified that the proposal is non-responsive.

Volume I: Non-Price Proposal Evaluation Criteria

Phase I

Factor I - Facilities Clearance:

Factor I will be evaluated during Phase I and will receive a rating of "Acceptable/Unacceptable" based on its submission of the verification of its Top-Secret Facilities Clearance Level meeting the requirements as detailed in the addendum to FAR 52.212-1 of the solicitation. This will be evaluated during Phase I on an "Acceptable/Unacceptable" basis utilizing the "Acceptable/Unacceptable" rating Table below. Offerors receiving an "Acceptable" rating in Phase I will move on to Phase II. Offerors receiving an "Unacceptable" rating will be considered un-awardable and will not be further evaluated.

Phase II

Factor II - Technical Approach:

The purpose of the technical factor and sub-factors is to assess the offeror's proposed approach to satisfy the Government's requirements. The evaluation of risk is related to the assessment of the offeror's proposed technical submittal. Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor involves risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance. Risk will be considered in the evaluation of the technical factor and sub-factors.

The Technical Approach factor consists of Sub-factor I, Staffing Approach and Sub-factor II, Performance and Management Approach. Sub-factors are weighted equally and will result in one Technical Approach rating detailed in the rating table identified as "**Combined Technical/Risk Table 2**". Offerors simply providing general statements or paraphrasing/ parroting the PWS in whole or in any part may receive a rating of unacceptable.

Note: A rating of "Marginal" for any factor or sub-factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. A proposal which includes a "Marginal" rating is not eligible for award if award is made on initial offers and will not be further evaluated unless exchanges are in the best interest of the Government. Offerors that receive a "Marginal" rating are considered to be susceptible to correction if the Contracting Officer determines that an exchange is appropriate and said exchange is conducted.

Note: Offerors receiving a rating of "Unacceptable" for any factor or sub-factor will not be considered for an award and will not be further evaluated.

Sub-factor I - Staffing Approach:

The offeror's overall staffing approach will be evaluated on its feasibility, comprehensiveness, and the degree to which the offeror demonstrates its understanding of, and capability to successfully accomplish, the staffing approach requirements listed above in the technical subfactor I in the addendum to FAR 52.212-1 of the solicitation.

Sub-factor II - Performance and Management Approach:

The offeror's proposed performance and management approach will be evaluated on feasibility, its comprehensiveness, and the degree to which the offeror demonstrates its understanding of, and capability to successfully accomplish, the performance and management approach requirements listed above in the technical sub-factor II in the addendum to FAR 52.212-1 of the solicitation.

Factor III - Past Performance:

The past performance evaluation factor assesses the degree of confidence the Government has in an offeror's ability to meet the contract's requirements based on the quality of a demonstrated record of recent and relevant performance. There are three (3) aspects to the past performance evaluation: recency, relevancy, and quality. These are combined to establish a single performance confidence assessment rating for each offeror.

Past Performance Recency: Recency is the first aspect of the past performance evaluation and is the time period during which past performance references are considered relevant. Recency is critical to establishing the relevancy of past performance information. For purposes of this solicitation, recent past performance is performance that has taken place within five (5) years as of the issuance date of this solicitation. Performance outside of this stated period will not be considered for evaluation purposes.

Past Performance Relevancy: Regarding relevancy, each past performance reference under each offeror's Past Performance submission will be evaluated to determine its scope and magnitude relative to the instant requirement. The following definitions will apply to this evaluation:

- **Scope:** Experience in the areas described in **PWS Sections 3 and 5 (including all sub-sections within PWS Sections 3 & 5).**
- **Magnitude:** The measure of the similarity of the dollar value of actually performed work that exists between the PWS and the offeror's referenced contracts during the stated five-year period established by the solicitation. In addition, performance data will only be assessed for those references demonstrating at least one (1) year of completed performance prior to the issuance date of this solicitation. If an offeror submits an IDIQ contract, an FSS contract, or a BPA itself, as a reference, only the dollar value of orders actually awarded in the past five (5) years will be considered when assessing magnitude. The base contract maximum or ceiling will not be considered in the magnitude assessment.

The relevancy rating assigned to each past performance reference will be considered in determining the weight to be given to that reference in the overall Past Performance Confidence Assessment. References determined to be "Not Relevant" will not be further considered. Similarly, the quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. In determining the rating for the past performance factor, past performance of greater relevancy will have more influence on the past performance confidence assessment than past performance of lesser relevancy.

Past Performance Quality: The third aspect of the past performance evaluation is to establish the overall quality of the offeror's past performance. The Government will review all past performance information collected and determine the quality of the offeror's performance, including general trends and usefulness of the information, and will incorporate this into the performance confidence assessment.

Past Performance Confidence Assessment: The overall assigned rating for past performance will be the Past Performance Confidence Assessment rating, defined in the table below. The assignment of this rating will be based on the overall quality of the recent and relevant past performance and will also consider the source of the information, the context of the data, and general trends in the offeror's performance. The quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. Evaluation will focus only on work already performed. Work yet-to-be performed and work not reflecting one year of completed performance by the solicitation issuance date will not be considered.

If the offeror's past performance is determined to be "Not Relevant" as defined in the solicitation, then the quality of the offeror's past performance will not be evaluated through a confidence assessment, and the past performance factor will be rated as "Neutral Confidence." If an offeror's past performance is determined to be relevant, then each past performance reference under the offeror's past performance submission that contributed to the determination of relevance (i.e., each reference that is rated at least somewhat relevant) will be evaluated to determine the quality of the offeror's performance under that reference. The quality of performance on contract references that are rated "Not Relevant" is not evaluated even when the overall past performance is found to be "Relevant."

In the case of offerors for which there is no information on past contract performance or where past contract performance information is not available, the offeror may not be evaluated favorably or unfavorably on the past performance factor. In this case, the offeror's past performance is "Unknown" and assigned a performance confidence rating of "Neutral Confidence." Although an offeror that lacks recent, relevant past performance may not be rated favorably or unfavorably with regard to past performance, the Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating provides better value to the Government than a "Neutral Confidence" past performance rating.

In order to evaluate Past Performance, the Government may also utilize existing data sources, including the Contractor Performance Assessment Reporting System (CPARS), the System of Award Management (SAM), the Electronic Subcontract Reporting System (eSRS) or other databases; communication with points of contact in the offeror's customer's organization, which could include private sector requirements and contracts personnel, Administrative Contracting Officers, Defense Contract Performance and Management Agency (DCMA) personnel, Procuring Contracting Officers, Contracting Officer's Representatives, and other Government activity requirements personnel. The Government may verify past performance information. The Government may contact some or all of the references provided, as appropriate, and may collect information through questionnaires, telephone interviews, and existing data sources. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside of the Government. This information will be used for the evaluation of past performance.

The past performance factor evaluation and past performance confidence assessment rating is separate and distinct from the contracting officer's responsibility determination. The assessment of the offeror's past performance will be used as a means of evaluating the relative capability of the offeror and other competitors to successfully meet the requirements of the solicitation.

NOTE: A rating of "Limited Confidence" for the past performance factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. A proposal that includes a "Limited Confidence" rating is considered to be susceptible to correction if the contracting officer determines that an exchange (pursuant to FAR 15.306) is appropriate and said exchange is conducted. A rating of "No Confidence" for the past performance factor means that the offeror's proposal is not awardable, is not susceptible to correction, and will not be further evaluated.

Volume II: Price Proposal Evaluation Criteria

Factor IV - Price Proposal:

Price proposals will be evaluated on the basis of price reasonableness in accordance with FAR 15.404-1. The Government will evaluate offers for award purposes by adding the total price in the Services Price Worksheet for the ordering period and FAR 52.217-8 option period.

Although Price is considered in a manner that makes it less important than the Non-Price factor, it has the potential to become more significant during the evaluation process. The degree of importance of the price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a proposal's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the offer. If, at any stage of the evaluation, all offerors are determined to have submitted equal, or virtually equal, or generally equivalent, non-price proposals, price could become the factor in determining which offeror receives the award. The contracting officer may evaluate any and all information submitted by the vendor to support the reasonableness of prices proposed. The method of evaluation used by the contracting officer is solely within the discretion of the contracting officer.

Options, to include FAR 52.217-8, will be evaluated pursuant to solicitation provision FAR 52.217-5, Evaluation of Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

Evaluation of Travel

The requirement does include travel pricing. The dollar values provided in the addendum to FAR 52.212-1, under Volume II: Factor IV - Price Proposal, in regards to Travel have been predetermined by the acquiring command, and shall be utilized for evaluation purposes in determining the total price for the contract.

Offerors responding to this solicitation are advised that, prior to award, the government may request Offerors to submit information/data to support price reasonableness such as copies of paid invoices for the same or similar items, sales history for the same or similar items, price list with effective date and/or copies of catalog pages along with any applicable discounts. Failure to submit the requested information may result in disqualification of the submitted proposal.

A written notice of award or acceptance of a proposal e-mailed or otherwise furnished to the successful Offeror within the time for acceptance specified in the proposal shall result in a binding contract without further action by either party.

Rating Tables

Technical Acceptable/Unacceptable Ratings Table 1

These ratings will be used in the evaluation of Phase I, Factor I - Facilities Clearance.

Rating	Description
Acceptable	Proposal clearly meets the minimum requirements of the solicitation
Unacceptable	Proposal does not clearly meet the minimum requirements of the solicitation

Combined Technical/Risk Table 2

These ratings will be used in the evaluation of Phase II, Factor II - Technical Approach.

Adjectival Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.

Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is un-awardable, and/or risk of performance is unacceptably high.

DEFINITIONS:

Strength - an aspect of an offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Significant Strength - an aspect of an offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Weakness - a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Weakness - a flaw that appreciably increases the risk of unsuccessful contract performance.

Deficiency - a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Risk - (as it pertains to source selection) The potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or sub-factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Uncertainty - aspect of a non-cost/price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake)

Past Performance Relevancy Ratings Table 3

These ratings will be used in the evaluation of Phase II, Factor III - Past Performance.

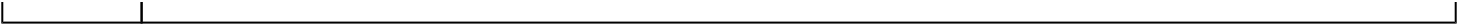
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Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort this solicitation requires.

Past Performance Confidence Assessment Ratings Table 4

These ratings will be used in the evaluation of Phase II, Factor III - Past Performance.

Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.



Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.217-5	Evaluation of Options.	Jul 1990		
52.237-1	Site Visit.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)

FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures.*

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Feb 2016)

REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far/part-52> and <https://www.acquisition.gov/dfars/part-252-solicitation-provisions-and-contract-clauses>

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004) (Oct 2025) Deviation 2025-O0004 (Mar 2025)

OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025)
(DEVIATION 2025-O0003 AND 2025-O0004)

(a) *Definitions.* As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended."Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.
- (2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

- (1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-
 - (i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and
 - (ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and
- (2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

- (1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and
- (2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

- (1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and
- (2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.]

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) *Veteran-owned small business concern*. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern*. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) *Certification Regarding Payments to Influence Federal Transactions (31 http://uscode.house.gov/ U.S.C. 1352).* (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
==	==	==
==	==	==
—	—	—

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. ____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, *Buy American-Free Trade Agreements-Israeli Trade Act*, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
==	==

_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

==
==

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(4) *Trade Agreements Certificate.* (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
==	==

==	==
==	==

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

- (1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;
- (2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;
- (3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and
- (4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment*. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples*.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126)*. [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products*.

Listed End Product	Listed Countries of Origin
=====	=====
=====	=====

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: ____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other ____.

(5) *Common parent*.

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name ____.

TIN ____.

(m) *Restricted business operations in Sudan*. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations*.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation*. The Offeror represents that-

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications*. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror*. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: _____.

Immediate owner legal name: _____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____.

Highest-level owner legal name: _____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law*.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: _____(or mark "Unknown").

Predecessor legal name: _____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

(10) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

- ☐ Black American.
- ☐ Hispanic American.
- ☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).
- ☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).
- ☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
- ☐ Individual/concern, other than one of the preceding.

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

- (1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.233-2 Service of Protest.

(Sep 2006)

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from **Paul Cofield at paul.b.cofield.civ@us.navy.mil**.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: **CMMC Level 1 (Self)**. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)